

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS <i>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30</i>				1. REQUISITION NUMBER		PAGE 1 OF 97	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER M0026426R0001	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME BRADLEY A. HOOVER				b. TELEPHONE NUMBER (No Collect Calls) (703) 432-1684	
8. OFFER DUE DATE/LOCAL TIME 10:00 AM 03 Nov 2025							
9. ISSUED BY MCINCR - RCO 2010 HENDERSON RD CAPT BRADLEY A. HOOVER QUANTICO VA 22124 TEL: (703) 432-1684 FAX:		CODE M00264		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: <u>100</u> % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ HUBZONE SMALL BUSINESS ☐ ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ EDWOSB ☐ 8(A) NAICS: 624190 SIZE STANDARD: \$16,000,000			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING	
						14. METHOD OF SOLICITATION ☐ RFQ ☐ IFB ☒ RFP	
15. DELIVER TO SEE SCHEDULE		CODE		16. ADMINISTERED BY CODE			
17a. CONTRACTOR/OFFEROR TELEPHONE NO.		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE	
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a. UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM					
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1. 52.212-4. FAR 52.212-3. 52.212-5 ARE ATTACHED.						ADDENDA ☒ ARE ☐ ARE NOT ATTACHED	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED.						ADDENDA ☐ ARE ☐ ARE NOT ATTACHED	
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) TEL: EMAIL:		31c. DATE SIGNED	

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS (CONTINUED)				PAGE 2 OF 97	
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				
32a. QUANTITY IN COLUMN 21 HAS BEEN ☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____					
32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT		37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL		
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY			
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT 41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42a. RECEIVED BY <i>(Print)</i>		
			42b. RECEIVED AT <i>(Location)</i>		
			42c. DATE REC'D <i>(YY/MM/DD)</i>	42d. TOTAL CONTAINERS	

Section SF 1449 - CONTINUATION SHEET

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Program Management FFP Task 1- Program Management in accordance with PWS Section 6.1 for the Base Period. FOB: Destination PSC CD: G099	12	Months		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	Call Center Support FFP Task 2- Call Center Support in accordance with PWS Section 6.2 for the Base Period. FOB: Destination PSC CD: G099	12	Months		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003	Contact Center Support FFP Contact Center Support in accordance with PWS for the Base Period.				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003AA	Camp Lejeune Contact Center Support FFP Task 3- Contact Center Support in accordance with PWS Section 6.3 for the Base Period. FOB: Destination PSC CD: G099	12	Months		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003AB	Camp Pendleton Contact Center Support FFP Task 4- Contact Center Support in accordance with PWS Section 6.4 for the Base Period. FOB: Destination PSC CD: G099	12	Months		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004	Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 for the Base Period.				
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004AA	Seattle, WA. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 for the Base Period. FOB: Destination PSC CD: G099	12	Months		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004AB	Jacksonville, NC. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 for the Base Period. FOB: Destination PSC CD: G099	12	Months		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004AC	Wichita, KS. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 for the Base Period. FOB: Destination PSC CD: G099	12	Months		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004AD	Orlando, FL. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 for the Base Period. FOB: Destination PSC CD: G099	12	Months		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004AE	Minneapolis, MN. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 for the Base Period. FOB: Destination PSC CD: G099	12	Months		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
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0005

Travel

COST

Base Period Travel in accordance with PWS Section 13. Travel cost shall be in accordance with FAR 31.205-46. The Contractor shall provide a breakout of the travel expenses in accordance with FAR 31.205-46. The established travel handling rate proposed at solicitation and incorporated at award shall be used. The handling rate encompasses handling and indirect expenses the contractor may account for when processing travel cost. No additional indirect rates are applicable since there is a negotiated fixed price handling rate in the contract. Fee is strictly prohibited on travel costs. NOTE: Due to system limitations, "each" means "dollars."

FOB: Destination

PSC CD: G099

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
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0006

OPTION

Phased Transition-In Period

FFP

Optional Phased Transition-In Period, in accordance with PWS Section 9.1, and FAR 52.217-7.

FOB: Destination

PSC CD: G099

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001		12	Months		
OPTION	Program Management FFP Task 1- Program Management in accordance with PWS Section 6.1 and FAR 52.217-9 for Option Period One. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1002		12	Months		
OPTION	Call Center Support FFP Task 2- Call Center Support in accordance with PWS Section 6.2 and FAR 52.217-9 for Option Period One. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1003					
OPTION	Contact Center Support FFP Contact Center Support in accordance with PWS and FAR 52.217-9 for Option Period One.				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1003AA		12	Months		
OPTION	Camp Lejeune Contact Center Support FFP Task 3- Contact Center Support in accordance with PWS Section 6.3 and FAR 52.217-9 for Option Period One. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1003AB		12	Months		
OPTION	Camp Pendleton Contact Center Support FFP Task 4- Contact Center Support in accordance with PWS Section 6.4 and FAR 52.217-9 for Option Period One. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1004	Field Service Support				
OPTION	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period One.				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1004AA		12	Months		
OPTION	Seattle, WA. Field Service Support				
	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period One.				
	FOB: Destination				
	PSC CD: G099				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1004AB		12	Months		
OPTION	Jacksonville, NC. Field Service Support				
	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period One.				
	FOB: Destination				
	PSC CD: G099				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1004AC		12	Months		
OPTION	Wichita, KS. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period One. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1004AD		12	Months		
OPTION	Orlando, FL. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period One. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1004AE		12	Months		
OPTION	Minneapolis, MN. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period One. FOB: Destination PSC CD: G099				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1005			Each		
OPTION	Travel COST Option Period 1 Travel in accordance with PWS Section 13. Travel cost shall be in accordance with FAR 31.205-46. The Contractor shall provide a breakout of the travel expenses in accordance with FAR 31.205-46. The established travel handling rate proposed at solicitation and incorporated at award shall be used. The handling rate encompasses handling and indirect expenses the contractor may account for when processing travel cost. No additional indirect rates are applicable since there is a negotiated fixed price handling rate in the contract. Fee is strictly prohibited on travel costs. NOTE: Due to system limitations, "each" means "dollars." FOB: Destination PSC CD: G099				

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2001		12	Months		
OPTION	Program Management FFP Task 1- Program Management in accordance with PWS Section 6.1 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2002		12	Months		
OPTION	Call Center Support FFP Task 2- Call Center Support in accordance with PWS Section 6.2 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2003					
OPTION	Contact Center Support FFP Contact Center Support in accordance with PWS and FAR 52.217-9 for Option Period Two.				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2003AA OPTION	Camp Lejeune Contact Center Support FFP Task 3- Contact Center Support in accordance with PWS Section 6.3 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099	12	Months		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2003AB OPTION	Camp Pendleton Contact Center Support FFP Task 4- Contact Center Support in accordance with PWS Section 6.4 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099	12	Months		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2004 OPTION	Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Two.				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2004AA OPTION	Seattle, WA. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099	12	Months		

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2004AB OPTION	Jacksonville, NC. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099	12	Months		

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2004AC		12	Months		
OPTION	Wichita, KS. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2004AD		12	Months		
OPTION	Orlando, FL. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2004AE		12	Months		
OPTION	Minneapolis, MN. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Two. FOB: Destination PSC CD: G099				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2005			Each		
OPTION	Travel COST Option Period 2 Travel in accordance with PWS Section 13. Travel cost shall be in accordance with FAR 31.205-46. The Contractor shall provide a breakout of the travel expenses in accordance with FAR 31.205-46. The established travel handling rate proposed at solicitation and incorporated at award shall be used. The handling rate encompasses handling and indirect expenses the contractor may account for when processing travel cost. No additional indirect rates are applicable since there is a negotiated fixed price handling rate in the contract. Fee is strictly prohibited on travel costs. NOTE: Due to system limitations, "each" means "dollars." FOB: Destination PSC CD: G099				

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3001		12	Months		
OPTION	Program Management FFP Task 1- Program Management in accordance with PWS Section 6.1 and FAR 52.217-9 for Option Period Three. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3002		12	Months		
OPTION	Call Center Support FFP Task 2- Call Center Support in accordance with PWS Section 6.2 and FAR 52.217-9 for Option Period Three. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3003					
OPTION	Contact Center Support FFP Contact Center Support in accordance with PWS and FAR 52.217-9 for Option Period Three.				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3003AA		12	Months		
OPTION	Camp Lejeune Contact Center Support FFP Task 3- Contact Center Support in accordance with PWS Section 6.3 and FAR 52.217-9 for Option Period Three. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3003AB		12	Months		
OPTION	Camp Pendleton Contact Center Support FFP Task 4- Contact Center Support in accordance with PWS Section 6.4 and FAR 52.217-9 for Option Period Three. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3004	Field Service Support				
OPTION	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Three.				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3004AA		12	Months		
OPTION	Seattle, WA. Field Service Support				
	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Three.				
	FOB: Destination				
	PSC CD: G099				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3004AB		12	Months		
OPTION	Jacksonville, NC. Field Service Support				
	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Three.				
	FOB: Destination				
	PSC CD: G099				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3004AC		12	Months		
OPTION	Wichita, KS. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Three. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3004AD		12	Months		
OPTION	Orlando, FL. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Three. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3004AE		12	Months		
OPTION	Minneapolis, MN. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Three. FOB: Destination PSC CD: G099				

 NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3005			Each		
OPTION	Travel COST Option Period 3 Travel in accordance with PWS Section 13. Travel cost shall be in accordance with FAR 31.205-46. The Contractor shall provide a breakout of the travel expenses in accordance with FAR 31.205-46. The established travel handling rate proposed at solicitation and incorporated at award shall be used. The handling rate encompasses handling and indirect expenses the contractor may account for when processing travel cost. No additional indirect rates are applicable since there is a negotiated fixed price handling rate in the contract. Fee is strictly prohibited on travel costs. NOTE: Due to system limitations, "each" means "dollars." FOB: Destination PSC CD: G099				

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4001		12	Months		
OPTION	Program Management FFP Task 1- Program Management in accordance with PWS Section 6.1 and FAR 52.217-9 for Option Period Four. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4002		12	Months		
OPTION	Call Center Support FFP Task 2- Call Center Support in accordance with PWS Section 6.2 and FAR 52.217-9 for Option Period Four. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4003					
OPTION	Contact Center Support FFP Contact Center Support in accordance with PWS and FAR 52.217-9 for Option Period Four.				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4003AA		12	Months		
OPTION	Camp Lejeune Contact Center Support FFP Task 3- Contact Center Support in accordance with PWS Section 6.3 and FAR 52.217-9 for Option Period Four. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4003AB		12	Months		
OPTION	Camp Pendleton Contact Center Support FFP Task 4- Contact Center Support in accordance with PWS Section 6.4 and FAR 52.217-9 for Option Period Four. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4004	Field Service Support				
OPTION	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Four.				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4004AA		12	Months		
OPTION	Seattle, WA. Field Service Support				
	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Four.				
	FOB: Destination				
	PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4004AB		12	Months		
OPTION	Jacksonville, NC. Field Service Support				
	FFP				
	Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Four.				
	FOB: Destination				
	PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4004AC		12	Months		
OPTION	Wichita, KS. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Four. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4004AD		12	Months		
OPTION	Orlando, FL. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Four. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4004AE		12	Months		
OPTION	Minneapolis, MN. Field Service Support FFP Task 5- Field Service Support in accordance with PWS Section 6.5 and FAR 52.217-9 for Option Period Four. FOB: Destination PSC CD: G099				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4005			Each		
OPTION	Travel COST Option Period 4 Travel in accordance with PWS Section 13. Travel cost shall be in accordance with FAR 31.205-46. The Contractor shall provide a breakout of the travel expenses in accordance with FAR 31.205-46. The established travel handling rate proposed at solicitation and incorporated at award shall be used. The handling rate encompasses handling and indirect expenses the contractor may account for when processing travel cost. No additional indirect rates are applicable since there is a negotiated fixed price handling rate in the contract. Fee is strictly prohibited on travel costs. NOTE: Due to system limitations, "each" means "dollars." FOB: Destination PSC CD: G099				

ESTIMATED COST

PERFORMANCE WORK STATEMENT

**SERGEANT MERLIN GERMAN
WOUNDED WARRIOR
OUTREACH AND RESOURCE SUPPORT SERVICES**

PERFORMANCE WORK STATEMENT

1. INTRODUCTION

This non-personal services requirement provides outreach and resource support to the United States Marine Corps Recovery Care Program (RCP) and is a vehicle the Wounded Warrior Regiment (WWR) will use to meet its mission. This contract supports the RCP's, Sergeant Merlin German, Wounded Warrior Call Center (WWCC) that provides assistance services for wounded, ill, and injured (WII) Marines, Sailors attached to Marine units, and their family members, throughout all phases of the recovery process and the transition to veteran status or return to active

duty. The WWCC and satellite contact centers on each coast support the WWR core mission with execution of a comprehensive outreach and assistance program for WII Marines. Support and assistance includes, but is not limited to, non-medical case management and coordination with adjacent government agencies (e.g., Department of the Navy, Veteran's Administration, Medical Boards, etc.); liaison with non-profit organizations and vocational rehabilitation concerns; and daily outreach and communication. Integral to the execution of this requirement is the vital outreach and support role conducted at the WWCC and the Wounded Warrior Battalion Satellite Contact Centers located at MCB Camp Lejeune, NC and MCB Camp Pendleton, CA. WWCC services primarily focus on Disability / Retired personnel and veterans, while the Contact Centers primarily support Battalion operations and those still on active duty.

2. WWR MISSION

Wounded Warrior Regiment provides leadership and ensures compliance with laws and Department of Defense (DoD) regulations related to the support, recovery, and non-medical care of combat and non-combat WII Marines, Sailors attached to Marine units, and their family members in order to maximize their recovery as they return to duty or transition to civilian life.

3. BACKGROUND

The WWR's RCP is supported by the WWCC. The WWCC is the primary source of contact for WII Marines and their family members to request and obtain appropriate non-medical assistance from the Marine Corps' WWR. This assistance includes case management, advocacy, resource identification, referral, information distribution, and care coordination services. The WWCC provides these wide range of services via phone calls, emails, text messages, and social media. WWCC communicates with WII Marines to ensure the appropriate delivery of resources, benefits, and WWR support is received. Support services are provided by WWCC and satellite Contact Centers via Customer Care Representatives (CCR), Non-Medical Case Managers (NMCM), and by Field Service Representatives (FSR).

4. SCOPE

The objective of this Performance Work Statement (PWS) is to provide the supported population - active duty, separated, retired, veteran - of approximately 35,000 WII Marines, Sailors attached to Marine Corps units, veterans, and their family members a centralized outreach and resource call center to assist with the recovery process and transition to veteran status through successful execution of the PWS Tasks. The supported population is subject to change, and may increase during times of war or crises, such as national emergencies.

5. GENERAL REQUIREMENTS

The contractor must possess in-depth knowledge and expertise related to the population they will support. Knowledge of industry best practices in customer service, contact center operations, and prescribed rules of conduct concerning privacy and confidentiality of information to provide a fully integrated, support solution are critical to successful execution of the PWS tasks. The contractor must remain responsive to program changes and new service offerings. Apart from Field Service Representatives (FSRs), all effort under this requirement are performed at the locations identified and in accordance with Section 14.

5.1. Outreach Requirements

While the WWCC and Contact Centers receive incoming phone calls, conducting outgoing telephone calls, text messages, and emails are the primary means of supporting the supported population. The outreach intervals for current injury classification/severity are classified by the United States Marine Corps and are required per the below table:

Current Injury Classification Outreach Requirements		
Target Population Classification	Location	Contact Frequency

Very Seriously Injured (VSI)	WWCC / Contact Centers	Every 6 months
Seriously Injured (SI)	WWCC / Contact Centers	Every 12 Months
Not Seriously Injured (NSI)	WWCC / Contact Centers	as needs are identified
Integrated Disability evaluation System (IDES)	Contact Centers	Two times: 1) Referral to IDES, 2), and at culmination of IDES findings
Disability Retirement List (Temporary / Permanent TDRL/PDRL)	WWCC / FSR	120 Days
Assessments	WWCC / Contact Centers	Every Contact

Note: 1) Current injury classification/severity may not be the same as initial classification/severity. Frequency of contact may increase in relation to the service member's need. 2) Classifications are defined in Marine Corps Order (MCO) 3040.4 (see Section 19, References).

Contact is defined as *actual* communication, via talk, text, or email, with the Marine, Sailor, or family member. There must be three (3) contact attempts, all made at different times of the day. All contact must be documented in the Marine Corps Wounded Ill and Injured Tracking System (MCWIITS).

5.2 Required support services are provided by:

5.2.1 Customer Care Representative

Customer Care Representatives (CCRs), considered the first contact for inbound calls, answer all incoming calls, conduct scheduled outreach calls, monitor social media (WWCC personnel only), and conduct interviews and assessments of support requirements with Marines and/or family members. Based upon this assessment, the CCR will provide information and guidance toward applicable resources, benefits, and entitlements that will assist with the individual's needs. The CCR will serve as a liaison between the Marine and the entity providing resource support to ensure positive contact is established and pertinent information is relayed to focus efforts and address the Marine's needs. Equally important, the CCR shall fully capture the essence of the WII Marines' concerns/issues and properly document the information in MCWIITS. WWCC CCRs will typically work in shifts supporting operations with manning dictated by anticipated incoming call volume and availability of target population for outreach.

Note: Based upon the WII population and other fluctuations, the WWR may require additional CCRs. In such circumstances, a future modification will be negotiated and agreed to.

5.2.2 Non-Medical Case Managers

Non-Medical Case Managers (NMCs) (required by DoD instruction 1300.24) provide extended support and outreach calls of non-complex, non-medical case management in situations where issues or concerns of the Marine and their family cannot be adequately resolved during their initial CCR phone call. NMCs work cases until all issues have been resolved before transferring them back to the CCR for continued outreach and support. The required number of NMCs and their case load will vary based upon the needs of the target population. Approximately three percent (3%) or 1,000 of the overall WWR supported personnel require NMC support (1,000 cases / 35,000 WWR population = 3%). NMCs average 40 cases each on a continuous basis. NMCs are located at the WWCC and at the Contact Centers located at Camp Lejeune and Camp Pendleton. Each NMC will have a telephone number separate from the main call center number and the contact centers to manage cases requiring support beyond a CCR. Additionally, a NMC will be assigned a 120 -day post End of Active Services (EAS) for a Recovering Service Member (RSM) whose case was supported by a Recovery Care Coordinator (RCC) while on active duty. NMCs will utilize MCWIITS to document the WII Marine's concerns and issues.

5.2.3 Field Service Representative

Field Service Representatives (FSRs) provide complex non-medical case management and extended support to the supported population. FSRs provide primary support to Marines on the Temporary Disability Retired List (TDRL).

FSRs serve as facilitators and coordinators connecting transitioning WII Marines to federal, state, and local support and transition resources. FSRs serve as liaisons for WII Marines and their families with Veterans Administration Transition Case Management teams to coordinate veteran medical care and will advocate on their behalf with representatives from various medical facilities. FSRs will engage Veteran Affairs Transition Patient Advocates to help coordinate Veteran medical care and benefits. FSRs will disseminate information on family and caregiver support services (e.g., respite care, scholarship opportunities, counseling support), and information on education and employment resources to assist transitioning WII Marines in their local communities (e.g., resume development, interview skills, network/employment opportunities, and application completion). FSRs are geographically dispersed throughout the continental United States in order to mitigate complex open and unresolved cases and conduct face-to-face interviews.

5.3 Targeted Outreach Capability

The contractor will integrate all platforms/databases, such as MCWIITS, and SharePoint that consolidate available resources, specific to the Marine being contacted during the course of the initial CCR phone call. WWCC representatives (CCR) will access information from MCWIITS prior to and during each call. MCWIITS provides the Marine's current address, phone number, email, interest inventory items, support needs, Comprehensive Recovery Plan Goals, and available resources specific to the Marine's needs. The intent is to make this information available to the WWR in the most efficient manner and would prevent possible violations of Personally Identifiable Information (PII) and Protected Health Information (PHI) or Health Insurance Portability and Accountability Act (HIPAA) policies. Access and training for MCWIITS will be provided by the Government upon award at an agreed to day/time, and as necessary throughout the life of the contract. The end state will be well documented in MCWIITS and will include information, resources, and feedback specific to each WII service member and their family members.

5.4 Performance Metrics

The contractor will establish, track, capture and provide performance metrics associated with call handling, call log references, intakes, referrals, and other aspects of performance for reporting to higher headquarters, outside agencies, private activities, and Congressional oversight panels. The contractor's methodology must ensure the validity of the results through sound analytical practices. The contractor must maintain ninety-eight percent (98%) accuracy of all call log references. This information will be provided in the form of recurring monthly status reports, as well as in response to ad hoc inquiries.

5.5 Domestic Abuse and Sexual Assault

Call Center and Contact Center personnel will not receive domestic abuse or sexual assault "restricted reports". If the caller requests restricted reporting pursuant to domestic abuse or sexual assault, Call Center personnel shall refer the caller to their Unit Victim Advocates (UVA) and/or Sexual Assault Response Coordinator (SARC) or appropriate civilian agency.

5.6 Requirements for Mandatory Reporting

The Privacy Act does not prohibit disclosure of life threatening or high-risk situations. All contractor personnel are required to report to the Contracting Officer's Representative (COR) and local authorities knowledge of such situations, including but not limited to child abuse or spouse abuse in which there is physical injury or threats of bodily harm, impairment due to drugs or alcohol by active-duty personnel, suicidal ideations or threats, homicide threats, and sexual assault.

5.7 Contract Kick-off Meeting

The COR and the contracting officer, in conjunction with the contractor, will schedule a Kick-off Meeting to occur within five (5) business days after contract award at a location agreed to by the Government. The meeting will provide an introduction between key contractor personnel and relevant Government personnel who will be involved with the effort. The purpose of this meeting is to discuss the contract's objectives and deliverables to achieve a clear

and mutual understanding of the contract's requirements, to identify and resolve potential problems, discuss plans submitted with its proposal, and other topics as warranted. The contractor will provide meeting minutes to the COR within two (2) business days after the meeting.

6. PERFORMANCE TASKS

The contractor is responsible for its overall responsiveness, cost control, quality of work, management of contractor team's effort, and the accomplishment of overall program objectives. The contractor will furnish everything needed to achieve the PWS objectives, unless otherwise stated as Government provided. The current versions of the Microsoft Office suite, Internet Explorer, ActivClient and Adobe Acrobat Pro must be provided to all contractor personnel under this contract.

To fulfill the WWR's mission for the target population, the following is required:

6.1 TASK 1

Program Management

Program Management is responsible for implementing, executing, and ensuring the overall program structure meets the requirements of this PWS.

6.1.1 The contractor will provide a solely dedicated (primary) Program Manager (PM) responsible for all operations; staffing and training; support; and quality aspects of the program strategy. The PM will coordinate task activities to ensure successful completion of all PWS tasks, at all locations. The PM will serve as the primary interface with the COR responsible for this effort. The contractor will also identify an alternate point of contact who will assume responsibilities when the primary is unavailable (sick, vacation, extended absences, etc.). PM support includes, but is not limited to:

- (a) Effective and direct communication with WWR staff and other various staff involved with the effort;
- (b) Collaborate and share information and data collected with the WWR staff;
- (c) Recommend and assist with overall coordination of care provided to the supported populations;
- (d) Coordinate the delivery of all deliverables;
- (e) Provide Monthly Status Report of performance metrics of Call Center and Contact Center outreach statistics (see PWS Section 5.4), as well as staffing and training status, and summaries of overall monthly activities and issues supported.);
- (f) Provide Quarterly Newsletter of Commander's remarks, news stories, upcoming events, and general demographic information (format and content provide by the Government.);
- (g) Provide Monthly Demographics Report (format provided by the Government.);
- (h) Provide updates to and maintenance of Standard Operating Procedures (SOP), which was submitted with the contractor's proposal, based on lessons learned, new efficient processes, or changes to policies or regulations.

6.1.2 The PM will be available to the WWR staff during core hours of operation from 0900 to 1500 ET, Monday thru Friday, except for all Federal holidays.

6.2 TASK 2

Call Center Support

The contractor will provide a fully operational Call Center (physical or virtual) operated and manned 0800 – 2000 Monday through Friday. The contractor will acquire and maintain, as applicable, suitable facilities and infrastructure, such as workspace, equipment (e.g. computers, printers, computer peripheral devices, etc.), supplies, software, commercial internet, furniture, phones, company-provided email address, and training. All contractor provided Information Technology, peripheral, systems, equipment, and associated support infrastructure shall be maintained in a state of operational readiness throughout the period of performance. The contractor will liaise with WWR IT/S-6 to ensure the contractor staff can always access the required Government-owned systems, with the exception of system outages. The contractor will collaborate with Government IT staff to obtain outage information and perform Government-recommended solutions. All contractor IT equipment and Information Assurance (IA) enabled devices must be maintained and configured in accordance with the Security Technical Implementation Guides (STIGS) or other Government provided documentation to ensure continuous support and functionality for mandatory applications such as MCWIITS and the WWR SharePoint Site Collection.

6.2.1 The contractor will utilize the Government’s designated, published phone number. The contractor’s call center must have the following capabilities:

- (a) A single toll-free phone system capable of:
 - multiple and simultaneous incoming and outgoing phone calls without delay or hold;
 - a call management system;
 - a call recording capability and ability to record other pertinent data, such as phone call duration and recording (to be maintained for the duration of the contract);
 - a back-up phone system to support the primary system to ensure no lapse in service;
 - roll-over capability to accept calls during non-operational hours to ; and
 - will not include automated call answering, virtual queue, or routing except during non operational times.

6.2.2 Social Media (SM) Requirements

The contractor will monitor social media sites during operational times to ensure all support needs of the RSM is sufficiently met. Response to requests for assistance on applications or SM sites must be made within sixty (60) minutes during operational times and within two hours of return from nonoperational times. This response is considered ‘engagement’; there are no ‘outreach’ SM requirements. Social Media requirements are listed in the below table:

Social Media	
Platform	Monitoring
Facebook	0800-2000 M-F
Instagram	0800-2000 M-F

6.2.3 The contractor will provide CCRs 0800 to 2000 M-F to receive all incoming telephone calls, conduct outreach telephone calls, text messaging, social media support and e-mail communication, and overall monitoring and response to comments and inquiries. The CCR will fully capture the concerns/issues of the WII Marine and properly document this information in MCWIITS. Other duties and responsibilities as stated in 5.2.1 are included.

6.2.4 The contractor will provide NMCMS 0800 to 1630 M-F for financial, administrative, personal, and transitional support and assistance of non-complex cases, as well as for other issues that may arise during care, recovery, or community reintegration. NMCMS may also provide 120 days post EAS support to individuals assigned an RCC

while on active duty or are determined by the Government to require additional transition support. The NMCM will fully capture the concerns/issues of the WII Marine and properly document this information in MCWIITS. NMCMs will be positioned at the Wounded Warrior Regiment Operations Center on a rotational basis, as determined jointly by the contractor and the COR. The purpose of the rotation is to increase WII cultural understanding of WWR operations and patient-centered care management services. The contractor shall incorporate regular face-to-face interactions with subject matter experts and directly collaborate with members of the multidisciplinary care team. These interactions are essential for building rapport, supporting comprehensive recovery plan adherence, and achieving intangible buy-in critical to long-term recovery care outcomes. Other duties and responsibilities as stated in 5.2.2 are included.

6.2.5 The contractor will initiate and maintain a subscription to a contact information search tool, subject to approval by the COR, to research specific Marine and Veteran contact information (phone, email, address).

6.2.6 The Government will provide a scheduling and management software package to support the social media posts.

6.3 TASK 3

MCB Camp Lejeune, NC Satellite Contact Center Support

The contractor shall assign a MCB Camp Lejeune Satellite Contact Center single point of contact (site lead) who will provide technical oversight, administration, and guidance to the contractor support staff and be available for assistance to Government personnel.

6.3.1 The contractor will provide staff for the Government's satellite Contact Center at Camp Lejeune, NC, operating Monday through Friday from 0800 to 1630 ET;

6.3.2 The contractor will ensure all calls are forwarded to the WWCC during all Contact Center non-operational hours Monday through Friday;

6.3.3 The contractor will provide CCRs to receive all incoming telephone calls, conduct outreach telephone calls and e-mail communication, and provide information to the target population, as well as to individuals participating in the Disability Evaluation System (DES). Other duties and responsibilities as stated in 5.1.2 are included.

6.3.4 The contractor will provide NMCMs for financial, administrative, personal, and transitional support and assistance of non-complex cases, as well as for other issues that may arise during care, recovery, or community reintegration. NMCMs will also provide 120-day post EAS support to individuals assigned an RCC while on active duty or are determined by the Government to require additional transition support. The NMCM will fully capture the concerns/issues of the WII Marine and properly document this information in MCWIITS. Other duties and responsibilities as stated in 5.2.2 are included.

6.4 TASK 4

MCB Camp Pendleton, CA Satellite Contact Center Support

The contractor shall assign a MCB Camp Pendleton Satellite Contact Center single point of contact (site lead) who will provide technical oversight, administration, and guidance to the contractor support staff and be available for assistance to Government personnel.

6.4.1 The contractor will provide staff for the Government's satellite Contact Center at Camp Pendleton, CA, operating Monday through Friday from 0800 to 1630 PT;

6.4.2 The contractor will ensure all calls are forwarded to the WWCC during all Contact Center non-operational hours Monday through Friday;

6.4.3 The contractor will provide CCRs to receive all incoming telephone calls, conduct outreach telephone calls and e-mail communication, and provide information to the target population, as well as to those participating in the Disability Evaluation System (DES). Other duties and responsibilities as stated in 5.1.2 are included.

6.4.4 The contractor will provide NMCMs for financial, administrative, personal, and transitional support and assistance of non- complex cases, as well as for other issues that may arise during care, recovery, or community reintegration. NMCMs may provide up to 120-day post EAS support to individuals assigned an RCC while on active duty or are determined by the Government to require additional transition support. The NMCM will fully capture the concerns/issues of the WII Marine and properly document this information in MCWIITS. Other duties and responsibilities as stated in 5.2.2 are included.

6.5 TASK 5

Field Services

6.5.1 The contractor will provide a Field Service Representative (FSR) at each of the five (5) locations listed below to support members of the support population who require extended support needs with complex, non-medical case management. FSRs are geographically dispersed throughout the continental United States at locations determined by the COR in order to mitigate complex open and unresolved cases. The FSR average caseload is 25 individuals on a monthly basis.

<u>FSR Location</u>	<u>Average Caseload</u>	<u>% per Site</u>
Seattle, WA	25	20%
Jacksonville, NC	25	20%
Wichita, KS	25	20%
Orlando, FL	25	20%
Minneapolis, MN	25	20%

Note: Based upon the WII population and other fluctuations, the WWR may require additional FSRs, as well as additional, or changing FSR locations. Once the effort necessitates 10 FSRs, an FSR Supervisor is required. The FSR Supervisor position will be considered a critical personnel position and will have minimum knowledge, skills, and ability qualifications assigned to it. In such circumstances, a future modification will be negotiated and agreed to.

6.5.2 The contractor will ensure the FSR has immediate and rapid travel capability to conduct face-to-face interviews and other support within a 350-mile radius of their geographical area of responsibility as necessary; limited circumstances may warrant travel outside of this radius. Travel will also include Semi-Annual Training, conducted in conjunction with the District Injured Support Coordinators (DISC). Total FSR travel may range from 10% to 30% of the time. All travel is in compliance with PWS Section 13.

6.5.3 The contractor will provide phones, equipment, furniture, materials, supplies, and other effects as required for all FSRs in the performance of this effort.

6.5.4 The contractor will train and ensure operational readiness within 60 days for all additional, newly hired FSRs.

7. DELIVERABLES

Unless otherwise directed by the COR, all deliverables must be submitted to the COR in accordance with the content, and due dates detailed in the table below. The COR is responsible for the tracking and acceptance of all deliverables. The contractor must review all deliverables to ensure accuracy, functionality, completeness, professional quality, and overall compliance with contract requirements. Unless otherwise indicated, the Government will provide written acceptance, comments, or change requests (if any) within ten (10) business days from receipt of the deliverable. If written acceptance, comments, or change requests are not provided within ten (10) business days, the deliverable is considered acceptable (i.e. final) as written by the contractor. If the Government

provides comments or change requests, the contractor will have two (2) business days from receipt of the Government's correspondence to incorporate the comments or change request and resubmit the deliverable for Government review and approval at no additional cost to the Government. The deliverable is not considered received until non-compliance issues are resolved. Non-compliance with any Government comment or change request must be justified in writing. Deliverables shall be non-password protected documents, and the Government shall have full access and usage rights. Unless otherwise noted, deliverables are allowed in contractor format using in Microsoft Word, Excel, or Adobe Acrobat, or other media device as agreed upon by the COR. If a deliverable happens to be due on a federal holiday or weekend day, the deliverable is due the next business day.

Delivery Schedule			
PWS Reference	Deliverable Title	Content	Due
5.4 and 6.1.1	Monthly Status Report	Described in PWS 5.4 and 6.1.1 (e)	No later than the 10 th business day of the month for the preceding month.
6.1.1	Quarterly Newsletter	See 6.1.1 (f)	By the 10 th business day following the end of a federal fiscal quarter.
6.1.1	Monthly Demographics Report	Target population statistics such as gender, age, common medical conditions, and others.	No later than the 10 th business day of the month for the preceding month.
6.1.1	Standard Operating Procedures	At a minimum: - Introduction, - Purpose, - Scope, - Standards of Conduct, - Communication Structure (to include roles and responsibilities), - Daily Operations (to include shift schedules and procedures) - Continuity of Operations - Quality Control Procedures	Final SOP within 60 business days after award. Maintenance of and updates to SOP as necessary
9.1	Phased Transition-In Plan	- Roles and Responsibilities - Plan of Action and Milestones - Communications Plan - Hiring, Recruiting, and Training Process - Risk Mitigation Strategy	Final Plan addressing Government comments due within five (5) business days after contract Kick-off Meeting
9.2	Transition-Out Plan	Minimum content at PWS 9.2	No later than 90 calendar days prior to contract expiration
10.3	Visit Authorization Letter	Government form provided at time of award.	Initial VAL due within 10 business days of award. Subsequent submissions as warranted due to contractor personnel staffing changes.
10.5	Non-Disclosure Agreement	Government form provided at time of award.	Within 10 business days of award and subsequent new hires.
5.7	Kick-off Meeting Minutes	-Title of Meeting with date, contract number, and contractor name -List of attendees: name, title, activity representing, contact information	Within 2 business days of the meeting.

		- Summary of the discussions, decisions, agreements reached -Assigned action items and personnel responsible for addressing/executing action item	
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8. STAFFING

The contractor must ensure the contractually required level of support for this requirement is maintained at all scheduled times. The contractor must ensure that all contract support personnel are present for assigned work hours and duties. The contractor must provide a fully qualified replacement for any employee that will be absent. Absent is defined as not present at work when scheduled and would, therefore, not meet the requirement to have a fully staffed and capable call center. Instances of emergency or sudden illness are exceptions to an immediate need of a replacement.

8.1 Critical Positions

The following positions are identified as critical. The contractor must ensure the below positions are filled for the entire period of performance of this effort.

8.1.1 Program Manager

The Program Manager must have the ability to:

- Provide strong managerial, leadership, and communication skills.
- Achieve organizational objectives.
- Collaborate and display positive interactions with members of the WWR and other government agencies.
- Assess, plan, implement, coordinate, monitor, and evaluate the PWS requirements.
- Coordinate team efforts to conduct comprehensive studies dealing with significant changes in workforce distribution, customer service positions, or related organizational structures; and
- Develop detailed plans, goals, and objectives for the long/short range implementation and administration of a major agency program; or an appropriate combination of education and experience demonstrating knowledge and skill equivalent to that above.

The Program Manager must possess the following minimum skills, education, and experience:

- Knowledge of the mission, organizational structure, operations, and interrelationships of the WWR.
- Knowledge of WII and veteran support, to include but not limited to; non-medical case management, Veterans Administration, IDES process, behavioral health support resources, Traumatic Service Member Group Life Insurance process.
- Knowledge of Marine Corps culture.
- Sustained successful performance in positions of increased responsibility.
- Master's Degree combined with 10 years working with the federal Government *OR* Bachelor's Degree combined with 10 years personnel and program management and 5 years' experience related to the Department of Defense Wounded Warrior Programs; and
- Three (3) years of experience in outreach and support operations related to WII and veterans.

8.1.2 Field Service Representative (FSR) Supervisor

Based upon the WII population and other fluctuations, the WWR may require additional FSRs, as well as additional, or changing FSR locations. Once the effort necessitates 10 FSRs, an FSR Supervisor is required. The FSR Supervisor position will be considered a critical personnel position and will have minimum knowledge, skills, and ability qualifications assigned to it. In such circumstances, a future modification will be negotiated and agreed to.

8.2 Substitution/Replacement of Critical Personnel

The contractor agrees that during the first 120 days of the contract performance period, the substitution/replacement of critical personnel shall be avoided unless the substitution/replacement is necessitated by the individual's sudden illness, death, transfer, or termination of employment. In the case of any of these events, the contractor shall promptly notify the contracting officer and the COR in writing, and provide the information required below in 8.2.1. After the initial 120-day period, all proposed substitutions/replacements of critical personnel must be submitted in writing to the contracting officer and COR with the information required in 8.2.1 at least 15 days in advance of the proposed substitutions.

8.2.1 Request for Substitution/Replacement

All requests for substitution/replacement of critical personnel or otherwise must provide a detailed explanation of the circumstances necessitating the proposed substitution/replacement; the qualifications of the proposed substitute/replacement, and any other information requested by the COR. All personnel substitutions must have qualifications equal to or higher than the qualifications of the individual they are substituting/replacing. The COR will evaluate such requests and promptly notify the contractor of approval or disapproval thereof.

8.3 Qualifications

8.3.1 Field Service Representative (FSR)

The FSR must possess the following minimum skills, education, and experience:

- Strong interpersonal communication skill set, including negotiating skills, and excellent oral and written communication skills;
- Ability to work independently and remote from direct program management support or supervision;
- Familiarity with Veterans Administration benefits, medical care coordination, as well as, Disability Retirement List (temporary and permanent), and various separations from military service;
- In-depth knowledge of Marine Corps culture.
- Bachelor's Degree OR minimum of 5 years' experience associated with helping, supervising, and providing guidance to service members;
- Five (5) years' experience working with the federal government; and
- Three (3) years' experience in non-medical case management/resource allocation.

8.3.2 Customer Care Representative (CCR)

The CCR must possess the following minimum skills, education, and experience:

- Strong interpersonal communication skills and excellent oral and written communication skills;
- Knowledge of Marine Corps culture;
- Understands the significance of the cultural bond and Marine ethos needed when dealing with Marines;
- Knowledge and understanding of a wide range of requirements relative to resource allocation and benefits delivery;
- High School Degree; and
- One (1) year of experience in call center operations or similar field.

8.3.3 Non-Medical Case Manager (NMCM)

The NMCM must possess the following minimum skills, education, and experience:

- Counseling experience or similar work in civilian community service settings;
- Strong interpersonal communication skill set including negotiating skills;
- Excellent oral and written communication skills;
- Knowledge of Marine Corps culture;

- Understands the significance of the cultural bond and Marine ethos needed when dealing with Marines; and
- Bachelor's Degree combined with 3 years' of experience working with the federal government or non-medical case management field OR High School Diploma combined with at least 5 years' experience associated with non-medical case management or related field identifying needs and paring with resources and providing guidance to service members.

8.4 Unsatisfactory Performance

The contractor will take appropriate corrective action within ten (10) business days of formal notification from the COR to correct any identified issues. In the event the issue remains unresolved in excess of ten (10) working days, the COR will notify the contracting officer so that appropriate action is taken, to include employee removal from current contract if warranted. The PM shall ensure that all Government owned property is accounted for and remains on-site should a contractor employee be removed.

9. TRANSITION PERIOD

9.1 Phased Transition-In

Prior to the end of the existing contract period, the Government may require the incoming contractor, in coordination with the Government and the incumbent contractor, to provide phase-in support for up to thirty (30) days. The in-coming contractor will complete all transition-in activities in accordance with its submitted draft Transition-In Plan and agreed to final plan, within thirty (30) calendar days after contract award.

9.2 Transition-Out

The contractor awarded under this effort shall ensure minimal service disruption to vital Government business and no service degradation during transition and will take all actions necessary to ensure a smooth transition of PWS requirements at the end of the contract. The contractor will provide a Transition-Out Plan describing the method to facilitate and accomplish a seamless transition for transferring responsibility from the incumbent contractor to the subsequent incoming contractor prior to the expiration of this contract. The contractor shall provide a Transition-Out Plan to the COR no later than ninety (90) calendar days prior to contract expiration. The contractor shall maintain full staffing throughout the transition and establish and maintain effective communication with the incoming contractor and Government personnel for the period of the transition via weekly status meetings.

The Transition-Out Plan should include, at a minimum:

- Points of contact;
- Project management processes;
- Location of technical and project management documentation;
- Appropriate contractor-to-contractor coordination to ensure a seamless transition, transition of key personnel, schedules and milestones, actions required of the Government, and any other item identified by the COR;
- Confirmation that all Government furnished items have been returned to the appropriate Government program personnel;
- Affirmation not to discuss, disclose, release, reproduce or otherwise provide or make available any such reports, materials, information, and all associated intellectual property (e.g., training materials, Standard Operating Procedures (SOPs), computer software and hardware, scripts and source code, interfaces, Tools, Works, and related items), in whatever form, created, generated, or produced under this effort, or any portion thereof, after completion of this contract;. Report all violations of this affirmation or the unauthorized use, disclosure, release, or reproduction of the preceding items within five (5) business days to the contracting officer and the COR.

10. SECURITY REQUIREMENTS

Contractor personnel will be required in the course of their duties to access the Marine Corps Enterprise Network (MCEN) and sensitive data using Common Access Cards (CAC). The US Government will initiate up to ten (10) background investigations over the life of the contract.

(a) To obtain DoD CACs and privileged access to required systems, contract personnel are required to have a favorable T-3, T-3R or NACLIC or higher level adjudication. Personnel with unfavorable adjudications are not eligible to perform work on this contract. If contractor personnel do not have current adjudication of T-3, T-3R or NACLIC or higher level, then, prior to commencement of work on this contract, all contractor personnel, at a minimum, must have an initiated Electronic Personnel Security Questionnaire (EPSQ SF86). The EPSQ SF86 must be reflected within the DoD Personnel Security System (currently Joint Personnel Access System (JPAS)) to perform work on this contract and to access Government systems in support of WWR.

(b) The contractor shall coordinate with the local site or activity as to procedures and issuance of the CAC. The contractor shall provide necessary Information Assurance certificates from MarineNet (CYBERM) and coordinate with WWR IT to complete a System Authorization Access Request (SAAR) form to obtain a .mil e-mail address. MCEN e-mail can be accessed on a MCEN workstation or on a contractor workstation with a CAC reader. The account will be the primary contact for e-mail communications regarding WII. It will be accessed at least once per every 30-day period.

(c) Contractor personnel must meet specific requirements in order to be granted these privileges and maintain these credentials. Compliance with all USMC regulations pertaining to network activities is mandatory. Failure to comply with security requirements will result in revocation of access privileges and personnel removal from work under this contract. FIPS PUB 201 is available at: <http://csrc.nist.gov/publications/fips/fips201-1/FIPS-201-1-chng1.pdf>. The Office of Management and Budget (OMB) associated guidance, M-05-24 can be found at: <http://www.whitehouse.gov/sites/default/files/omb/memoranda/fy2005/m05-24.pdf>

(d) While employed on this contract, the US Government will facilitate routine re-investigations as they come due in accordance with applicable Defense Security Service directives.

10.1 Information Security

Although not authorized access to classified information, contractor personnel may occasionally access or have knowledge of confidential or sensitive information, such as, but not limited to, PII and information about unit movements. The contractor shall comply with SECNAVINST 5510.36A (<https://www.secnave.navy.mil/doni/Directives/05000%20General%20Management%20Security%20and%20Safety%20Services/05-500%20Security%20Services/5510.36B.pdf>) per the provisions of the Headquarters Marine Corps Information and Personnel SOP. The contractor shall ensure all personnel are aware of their responsibility to safeguard sensitive and privileged information.

10.2 Sensitive Data

Contractor personnel may, in the course of their duties on this contract, handle or have access to sensitive data covered under the Privacy Act and Health Insurance Portability and Accountability Act (HIPAA). Contractor personnel must complete HIPAA and Privacy Act training through Joint Knowledge Online and MarineNet in order to obtain system access. All contractor personnel must complete this training no later than the end of the transition period and prior to full performance. WWCC contractor employees are subject to Section 552 of Title 5, United States Code (commonly referred to as the "Privacy Act of 1974") and Department of Defense Directive 5400.11, "DoD Privacy Program," May 8, 2007.

10.3 Visit Authorization Letter

All contractor personnel are required to be annotated on a Visit Authorization Letter (VAL) submitted to the WWR Security Coordinator (10) business days upon award. The COR will provide the required VAL content information to the contractor at time of award. The contractor will update the letter upon hiring of or removal of contract staff and provide a copy to the COR and WWR Security Coordinator.

10.4 All contractor personnel must comply with WWR training requirements as prescribed in the most current version of the WWR Training and Education Plan (See References, Section 19.).

10.5 Confidentiality

All contractor personnel shall safeguard personal RSM information in accordance with the Privacy Act of 1974. Records containing personal information must include a Privacy Act statement signed by the RSM. Only disclose personal information, not specifically authorized by the RSM, via a signed release of information, after approval by the Base Adjutant or Staff Judge Advocate. Improper disclosure of sensitive or private information in violation of the DON Privacy Act Program (SECNAVINST 5211.5D) or the Nuclear Weapons Personnel Reliability Program (OPNAVINST 5510.162) may subject the contractor or its personnel to criminal liability. Due to the type of personal information contractor personnel will have access to, all contractor personnel must sign a non-disclosure of information agreement and comply with all HIPAA security requirements. Non-disclosure agreements (SF-312) for each employee working under this contract must be submitted to the COR within ten (10) business days of contract award and within ten (10) business days of any new employee beginning work under this contract. When and if required, the contractor will ensure strict compliance with the Defense Federal Acquisition Regulation Supplement requirements set forth in 252.235-7004 to submit all research protocols and exemption determinations for review and approval by a designated DoD Human Resource Protection Official. Furthermore, when directed by the COR, the contractor is required to comply with MCO5300.18, the Marine Corps Survey order, or other superseding guidance. Moreover, any contractor employee involved with Human Subject Research may be required to receive additional training.

10.6 Key Control

The contractor will develop a method of controlling and accounting for all keys issued to it by the Government. As required, keys issued to the contractor will not be duplicated without Government approval. The contractor will report the loss of any key to the COR, not later than two (2) hours after discovery of such loss. The contractor will be responsible for all expenses associated with the replacement of a key(s), re-keying, or replacement of locks.

11. WORKING ON A GOVERNMENT INSTALLATION

11.1 The contractor shall provide each of its personnel an identification badge, which identifies, by photograph, the individual as an employee of the contractor. These badges shall be clearly identifiable while on Government property and worn at all times and presented for examination upon request from the contracting officer, COR, Military Police, or any other Government Official with a need to see the badge.

11.2 The contractor and its personnel shall be subject to all installation traffic, security, and registration regulations for personnel and vehicles. Copies of current installation regulations can be accessed with the following links:

<https://www.quantico.marines.mil/Info/Base-Access/>

<https://www.pendleton.marines.mil/Staff/Special-Staff/Security-and-Emergency-Services/Base-Access/>

<https://www.lejeune.marines.mil/Base-Access/>

11.3 All contractor personnel attending meetings, answering Government telephones, working on site, where their contractor status is not known to third parties, must identify themselves as contractors, to include wearing ID badges, which identify them as contractor personnel. Contractor personnel shall also ensure that when logged onto Government equipment that their profile shows them as contractor personnel.

11.4 Contractor employees shall clearly identify themselves and the company they work for whenever making contact with Government personnel by telephone or other electronic means.

11.5 Required Insurance: The following types of insurance are required IAW FAR Clause 52.228-5, “Insurance – Work on a Government Installation” and shall be maintained in the minimum amounts:

11.5.1 Workmen’s Compensation and Employers Liability Insurance as required by law except if this contract is to be performed in a State that does not require or permit private insurance, then companies with the statutory or administrative requirements in any such State will be satisfactory. The required Workmen’s Compensation insurance shall extend to cover employer’s liability for accidental bodily injury or death and for occupational disease.

11.5.2 General Liability Insurance. Bodily injury liability insurance, in the minimum limits of per occurrence shall be required on the comprehensive.

11.5.3 Automobile Liability Insurance. This insurance shall be required on the comprehensive policy and shall provide bodily injury liability and property damage liability covering the operation of all automobiles used in connection with the performance of the contract. At least the minimum limits of per person and per occurrence for bodily injury and per occurrence for property damage shall be required.

12. ALLOCATION OF INTELLECTUAL PROPERTY, AND USE OF DATA, INFORMATION AND MATERIALS

12.1 In accordance with the DFARS data rights clauses associated with this effort, without limitation, all reports, materials (including, but not limited to, all training and training-related materials including, but not limited to, all SOPs, lessons learned, analyses/evaluations and analyses/evaluation criteria, on-line course materials, computer software/applications and hardware, source code, interfaces, tools, works, and other related items) data, information, and all electronic/digital files and other items described herein, and any other items, (hereinafter referred to individually or collectively as Items or Items) that are first created, generated, or produced and required to be delivered under, or as a result of, this PWS shall be provided to the U.S. Government/Marine Corps with the level of intellectual property/data rights provided by such DFARS data rights clauses.

Using the format described by DFARS 252.227-7017, the contractor will provide the COR with a data rights assertion listing for all deliverables including both non-commercial and commercial technical data and computer software. Furthermore, the contractor shall not use the contractor’s or a third-party’s proprietary data, information, software, items and/or other materials for any purpose without meeting the requirements of DFARS clauses 252.227-7020 and/or 252.227-7025, and without the specific, written approval by the contracting officer, prior to start of any work.

12.2 Unless otherwise directed by the COR, all documents produced or revised by contractors or developed through contractor participation must be marked as “Contractor generated documents” or otherwise identified in a manner that discloses the contractor’s participation.

12.3 The contractor and its personnel have an obligation to protect unauthorized use or disclosure of all Government proprietary, confidential, sensitive, or classified Items, including PII or Personal Privacy related information, obtained during the performance of this contract. All Items obtained under this PWS such as, but not limited to, information available for use relating to technical and statistical data, trade secrets, processes operations, style of work, apparatus, amount or source of any income, profits, losses, or expenditures of any person, firm, partnership, corporation, or association are subject to PII and HIPAA. Contract personnel shall not publish, divulge, disclose or make known Items created or provided expressly for this contract, in any manner, or to any extent not previously authorized in writing by the contracting officer or the COR. When the contractor’s need for any such Items ends, they will return all Items promptly within ten (10) business days to the appropriate government program personnel.

13. TRAVEL

13.1 Travel for the PM and the FSRs is anticipated. The PM may be required to travel to MCB Camp Lejeune and MCB Camp Pendleton at least once annually for the purpose of staff inspections. The FSR may be required to travel up to 30% of the time, as well as to attend one-week long semi-annual training events. In the event of travel, the contractor is responsible for implementing a travel management plan that ensures adherence to federal government procedures, and suitable contractor internal controls to prevent unauthorized cost incurrence. The contractor will adhere to FAR 31.205-46 for all travel requirements under this contract.

13.1.1 Local Travel

The Joint Travel Regulations define local travel as travel within a 50-mile radius of the Government location for which services are being provided. The Government will not reimburse the contractor for local travel for attendance at training, meetings, and other requirements within the 50-mile radius.

13.1.2 Non-Local Travel

Non-local travel is defined as travel outside of a 50-mile radius of the Government location for which services are being provided. Non-local travel will be required in performance of this contract, and identified in advance by, or to, the COR, when and if necessary.

13.1.3 Contractor Request and Approval

All non-local, non-emergency travel under the contract must be specifically requested in writing (e-mail will suffice) by the contractor and approved by the COR, prior to incurring any travel expense. The fixed handling percentage rate proposed and awarded is allowed. The handling rate encompasses handling and indirect expenses the contractor may account for when processing and acquiring travel transactions. No additional indirect rates are allowed. Fee/profit is not allowed. The contractor shall submit the written request to the COR five (5) business days in advance. The travel request shall include as a minimum, the following:

- Contract number;
- Date, time, and place of proposed travel;
- Purpose of travel and how it relates to the contract;
- Contractor's estimated cost of travel with a breakdown of the estimated costs of transportation, lodgings, meals, and incidentals; and
- Name(s) of individual(s) traveling.

The COR will review and approve or disapprove, as appropriate, all travel requests submitted giving written notice of such approval or disapproval to the contractor. Costs incurred without authorization will not be reimbursed.

Non-local emergency travel, emergency being a serious and often a dangerous situation involving an RSM requiring a timely in-person FSR response, is applicable and approved for the FSR only. The COR must be notified within 24 hours of all non-local emergency travel by the FSR under the contract. The contractor's notification will include the bulleted items within 13.1.3.

13.1.4 Travel Reimbursement

Travel will be paid on a cost-reimbursement basis for actual costs incurred (no fee). Travel reimbursement is limited to travel during performance of the contract. Travel reimbursement does not include relocation expenses for contractor employees prior to their start of performance on this contract.

The contract includes a not-to-exceed funding limitation for travel costs. When the contractor expects total funding expended for reimbursable travel to reach 85 percent of the total funds available on the travel line item, the contractor will notify the contracting officer and the COR. The notice will state the estimated amount of additional funds required to continue performance for the period specified in the contract. The contractor will not exceed or

incur costs that exceed the amount of funding stated on the reimbursable travel line item. The Government is not obligated to reimburse the Contractor for otherwise reimbursable travel in excess of the funded amount state on the reimbursable travel line item.

The contractor is not obligated to continue performance of any reimbursable work under this contract or otherwise incur costs for reimbursable travel in excess of the funded amount stated in the reimbursable travel line unless the contracting officer notifies the contractor in writing that the funded amount stated under the reimbursable travel line item has been increased.

14. PLACE OF PERFORMANCE / HOURS OF OPERATION

Place of Performance	Hours of Operation
Wounded Warrior Call Center: Contractor's (physical or virtual) facility in accordance with PWS 6.2.1	0800 – 2000 ET Mon- Fri
Wounded Warrior Battalion: MCB Camp Lejeune, NC	0800 – 1630 ET Mon - Fri
Wounded Warrior Battalion: MCB Camp Pendleton, CA	0800 – 1630 PT Mon - Fri

With the exception of Field Service Representatives (FSRs), all effort under this requirement is performed at the above locations during the operational hours identified, and in accordance with this PWS.

Contractor personnel at the contact centers are authorized to telework in the local area of the locations above for up to 50% of their work hours.

The PM shall be available to the WWR staff during core hours of operation from 0900 to 1500 ET, Monday thru Friday except for Federal holidays.

The Call Center will maintain the identified hours of operation, to include all holidays. Contractor personnel may not have access to Federal workspace or the COR on the following Federal holidays, and any day deemed a holiday by the President of the U.S.:

- New Year's Day
- Birthday of Martin Luther King, Jr
- Washington's Birthday
- Memorial Day
- Juneteenth
- Independence Day
- Labor Day
- Columbus Day
- Veterans Day
- Thanksgiving Day
- Christmas Day

In the event that MCB Camp Lejeune or MCB Camp Pendleton are closed due to severe weather or other reasons, Contact Center Staff at these satellite locations will not have access to Federal workspaces during those periods. Upon authorization by the COR, the contractor may execute its inclement weather plan.

While the Call Center is staffed and operational 0800 to 2000, the Government realizes the need to ensure the safety of contract personnel. The contractor will follow its continuity of operations plan that is included in its SOP. The initiation of this plan must be approved by the COR for events warranting performance other than on-site (if applicable).

15. NON-PERSONAL SERVICE STATEMENT

Contractor management personnel will be responsible for the control, direction and supervision at all times of contractor employees performing services under this contract. The contractor's management personnel shall ensure employees properly comply with the performance standards outlined in the PWS. Employee actions may not be interpreted or implemented in any manner that results in any contractor employee creating or modifying Federal Policy, obligation of appropriated funds of the U.S. Government, overseeing the work of Federal employees or other violations set forth as prohibitions in Subparts 7.5 and 37.1 of the Federal Acquisition Regulation (FAR).

16. CONTRACTING OFFICER'S REPRESENTATIVE (COR)

The WWR will designate a COR who represents the contracting officer by having oversight of all contract tasks, to include technical oversight of performance, deliverable acceptance, invoice certification, and coordination of follow-on work efforts. The COR is not empowered to award, agree to, sign, or modify any contract, including delivery orders, or in any way to obligate the payment of money by the Government. The COR may not take any action which may affect contract or delivery order schedules, funds, or scope. The contracting officer must make all contractual agreements, commitments, or modifications involving price, quantity, quality, delivery schedules, labor mix, or other terms and conditions of the contract. The COR shall not disclose source selection or proprietary information, provide any budgetary information to the contractor, authorize personal services, or interfere with the contractor's personnel practices or organized labor. The Marine Corps Installations Command National Capital Region – Regional Contracting Office (MCINCR-RCO) contracting officer will interface with prime contractor representatives for payment, administration, and all contractual issues.

17. GOVERNMENT PROVIDED RESOURCES

17.1 No Government furnished facilities or workspaces are provided as a matter of routine within Headquarters Marine Corps WWR buildings aboard MCB Quantico, Virginia. The contractor will have access to Government workspaces, as necessary, to provide PWS specified support, which may include occasional and temporary on-site support. The Government will provide 17 workstations (laptop) and are considered incidental to the place of performance in accordance with FAR 45.000. These workstations are listed in "RFP PWS Attachment 1 GFP". The contractor will maintain all Government furnished workstations in a manner consistent with Marine Corps standards. The contractor will ensure all Government property is retained at or returned to its assigned place of performance during all personnel turnover and at the end of contract performance. Government furnished property FAR and Defense Federal Acquisition Regulation Supplement (DFARS) clauses are effective in the event Government furnished workspace item(s) are taken off-site (e.g. telework) as approved in advanced by the COR.

17.1.1 The contractor will ensure all personnel maintain Marine Corps Enterprise Network (MCEN) access requirements and ensure that access does not lapse.

17.2 The Government will be responsible for providing computers (workstations), computer peripherals, and Internet access as required in the performance of this effort for onsite contractor support at the WWR Wounded Warrior Operations Center (WWOC) located at MCB Quantico,

17.3 The Government will furnish the necessary workspaces, which will include desks, telephones, internet, computers, and computer peripheral and connectivity at the WWR satellite Contact Centers located aboard MCB Camp Lejeune and MCB Camp Pendleton that are incidental to the place of performance to use in the performance of the contract. The contractor requires all personnel to keep Government property in their possession and use (e.g., workspaces, furnishings and equipment) in a manner consistent with Marine Corps standards for fire prevention, health and safety.

17.4 All Government-owned software in support of this effort will be provided and requires conditional approval from the proper authority for access to Information Technology systems. The Government will provide the contractor updates to system requirements.

18. AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the contractor's facilities or in any other manner communicates with contractor personnel during the performance of this contract shall constitute a change under FAR 52.212-4(c).

- (a) The contractor shall not comply with any order, direction, or request of Government personnel unless it is issued in writing and signed by the contracting officer or is pursuant to specific authority otherwise included as a part of this contract.
- (b) The contracting officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, said authority remains solely the contracting officer's. In the event the contractor effects any change at the direction of any person other than the contracting officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in cost incurred as a result thereof.

19. REFERENCES

The following is a list of documents and criteria applicable to this PWS. The contractor shall be familiar and comply with current applicable directives and instructions governing the references listed below. Unless specified otherwise, publications listed, or updated versions, are available online. If a publication is not available on the internet, the COR will provide this publication to the contractor upon request.

- Joint Travel Regulations (JTR)
- SECNAVM-5210.T Department of the Navy Records Management Program
- NAVMC DIR 5210.11 E Marine Corps Records Management Program Manual
- SECNAV-5510.36 Department of the Navy Information Security Program (ISP)
- SECNAVINST 1850.4F DON Disability Evaluation System Manual
- MCO 6320.2F Administration and Processing of Hospitalized Marines
- MCO P3000.13 E Readiness Standard Operating Procedures (SOP)
- MCO P1070.12K MARCOR Individual Records Administration Manual (IRAM)
- Wounded Warrior Regiment Order 3000.1 (COR will provide a copy)
- MARADMIN 624/08 Homeland Security Presidential Directive 12
- <https://www.safehelpline.org/search.cfm>
- <http://centers.rainn.org/>
- DASN MEMO Revised Timeliness Standards for the IDES - 180 Days
- HA MEMO Minimum Standards for Disability Evaluation System Multi-Disciplinary Briefing
- WWR Training and Education Plan , Bulletin 1500 dated 20 December 2019
- MCO 3040.4
- WWRO 6300.1B
- WWRO 3000.1C
- WWRO 3000.2B
- MCO 5040
- DoD 1300.24
- WWRO 6320
- <https://www.cyber.mil/stigs/downloads/> (STIG information)

20. INCORPORATION OF CONTRACTOR'S PROPOSAL INTO THE CONTRACT

The contractor's proposal is hereby incorporated into the contract. In the event of any conflict between the proposal, which is incorporated into the contract, and any other portion of the contract, the conflict will be resolved in favor of the contractual terms that were provided in the Government's proposal request. Moreover, in the event that the contractor's proposal exceeds any proposal request requirement it will become the minimum or threshold contract requirement.

21. PERFORMANCE REQUIREMENTS SUMMARY (PRS)

Performance Objective	PWS Reference	Performance Standard	Acceptable Quality Level	Surveillance Method	Incentive
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			(AQL)		
Provide qualified personnel to meet PWS objectives.	8.	Positions identified as critical personnel are filled at all times and personnel meet the minimum skills, education, and experience identified in the PWS.	All critical positions are filled no less than 95% of the time. Proposed substitutions are requested no less than 10 days in advance.	-Monthly COR Inspection	- CPARS rating - Option not Exercised
Provide reoccurring reports timely and accurately.	6.1.1 7.	The Monthly Status Report is submitted by the 10 th business day of the subsequent month for the preceding month and is complete and correct when submitted.	Call Logs are maintained and accurate 98% of the time.	- Monthly COR Analysis	- CPARS rating - Option not Exercised
		The Quarterly Newsletter is submitted by the 10 th business day after the end of each fiscal quarter and is complete and correct when submitted.	All reports are submitted on the due date.		
		The Monthly Demographics Report is submitted by the 10 th business day of the subsequent month for the preceding month and is complete and correct when submitted.	Each report contains no more than 3 substantive content errors.		
Provide timely and consistent Current Injury Classification outreach requirements	5.1	The target population is contacted at the frequency stated in the PWS.	Frequency goals are achieved 98% of the time.	-Monthly COR/WWR Program Management Analysis	-CPARS rating -Option not Exercised
Provide continuous monitoring and maintenance of social media platforms.	6.2.2	All social media platforms are monitored during the stated hours and request for	Social media monitoring is achieved 100% of the time from 0800 to 2000.	-Monthly COR Inspection	-CPARS rating -Option not Exercised

		assistance is responded to within 60 minutes from the start of working hours.	Response to assistance requests are made within 60 minutes 100% of the time.		
Implement and maintain quality control procedures	6. 7.	Management responsiveness to quality of work and accomplishment of overall program objectives exhibits customer orientation, cooperative behavior, and timely and complete corrective action of identified problems is implemented and maintained throughout the life of the contract.	Performance standard is met 100% of the time. Corrective action on identified problems is meaningful and prevents recurrence.	-Monthly performance evaluation meetings (Periodic Inspection)	-CPARS rating -Option not Exercised

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government
0002	Destination	Government	Destination	Government
0003	N/A	N/A	N/A	N/A
0003AA	Destination	Government	Destination	Government
0003AB	Destination	Government	N/A	Government
0004	N/A	N/A	N/A	N/A
0004AA	Destination	Government	Destination	Government
0004AB	Destination	Government	Destination	Government
0004AC	Destination	Government	Destination	Government
0004AD	Destination	Government	Destination	Government
0004AE	Destination	Government	Destination	Government
0005	Destination	Government	Destination	Government
0006	Destination	Government	Destination	Government
1001	Destination	Government	Destination	Government
1002	Destination	Government	Destination	Government
1003	N/A	N/A	N/A	N/A
1003AA	Destination	Government	Destination	Government

1003AB Destination	Government	N/A	Government
1004 N/A	N/A	N/A	N/A
1004AA Destination	Government	Destination	Government
1004AB Destination	Government	Destination	Government
1004AC Destination	Government	Destination	Government
1004AD Destination	Government	Destination	Government
1004AE Destination	Government	Destination	Government
1005 Destination	Government	Destination	Government
2001 Destination	Government	Destination	Government
2002 Destination	Government	Destination	Government
2003 N/A	N/A	N/A	N/A
2003AA Destination	Government	Destination	Government
2003AB Destination	Government	N/A	Government
2004 N/A	N/A	N/A	N/A
2004AA Destination	Government	Destination	Government
2004AB Destination	Government	Destination	Government
2004AC Destination	Government	Destination	Government
2004AD Destination	Government	Destination	Government
2004AE Destination	Government	Destination	Government
2005 Destination	Government	Destination	Government
3001 Destination	Government	Destination	Government
3002 Destination	Government	Destination	Government
3003 N/A	N/A	N/A	N/A
3003AA Destination	Government	Destination	Government
3003AB Destination	Government	N/A	Government
3004 N/A	N/A	N/A	N/A
3004AA Destination	Government	Destination	Government
3004AB Destination	Government	Destination	Government
3004AC Destination	Government	Destination	Government
3004AD Destination	Government	Destination	Government
3004AE Destination	Government	Destination	Government
3005 Destination	Government	Destination	Government
4001 Destination	Government	Destination	Government
4002 Destination	Government	Destination	Government
4003 N/A	N/A	N/A	N/A
4003AA Destination	Government	Destination	Government
4003AB Destination	Government	N/A	Government
4004 N/A	N/A	N/A	N/A
4004AA Destination	Government	Destination	Government
4004AB Destination	Government	Destination	Government
4004AC Destination	Government	Destination	Government
4004AD Destination	Government	Destination	Government
4004AE Destination	Government	Destination	Government
4005 Destination	Government	Destination	Government

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
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0001	POP 15-APR-2026 TO 14-APR-2027	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
0002	POP 15-APR-2026 TO 14-APR-2027	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
0003	N/A	N/A	N/A	N/A
0003AA	POP 15-APR-2026 TO 14-APR-2027	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
0003AB	POP 15-APR-2026 TO 14-APR-2027	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
0004	N/A	N/A	N/A	N/A
0004AA	POP 15-APR-2026 TO 14-APR-2027	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
0004AB	POP 15-APR-2026 TO 14-APR-2027	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
0004AC	POP 15-APR-2026 TO 14-APR-2027	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
0004AD	POP 15-APR-2026 TO 14-APR-2027	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
0004AE	POP 15-APR-2026 TO 14-APR-2027	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
0005	POP 15-APR-2026 TO 14-APR-2027	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
0006	14-APR-2026	1	M00084 WOUNDED WARRIOR REGIMENT 1998 HILL AVENUE QUANTICO VA 22143 KATIE HAMLIN 703-784-3485 FOB: Destination	M00084

1001	POP 15-APR-2027 TO 14-APR-2028	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
1002	POP 15-APR-2027 TO 14-APR-2028	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
1003	N/A	N/A	N/A	N/A
1003AA	POP 15-APR-2027 TO 14-APR-2028	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
1003AB	POP 15-APR-2027 TO 14-APR-2028	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
1004	N/A	N/A	N/A	N/A
1004AA	POP 15-APR-2027 TO 14-APR-2028	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
1004AB	POP 15-APR-2027 TO 14-APR-2028	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
1004AC	POP 15-APR-2027 TO 14-APR-2028	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
1004AD	POP 15-APR-2027 TO 14-APR-2028	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
1004AE	POP 15-APR-2027 TO 14-APR-2028	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
1005	POP 15-APR-2027 TO 14-APR-2028	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
2001	POP 15-APR-2028 TO 14-APR-2029	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
2002	POP 15-APR-2028 TO 14-APR-2029	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084

2003	N/A	N/A	N/A	N/A
2003AA	POP 15-APR-2028 TO 14-APR-2029	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
2003AB	POP 15-APR-2028 TO 14-APR-2029	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
2004	N/A	N/A	N/A	N/A
2004AA	POP 15-APR-2028 TO 14-APR-2029	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
2004AB	POP 15-APR-2028 TO 14-APR-2029	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
2004AC	POP 15-APR-2028 TO 14-APR-2029	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
2004AD	POP 15-APR-2028 TO 14-APR-2029	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
2004AE	POP 15-APR-2028 TO 14-APR-2029	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
2005	POP 15-APR-2028 TO 14-APR-2029	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
3001	POP 15-APR-2029 TO 14-APR-2030	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
3002	POP 15-APR-2029 TO 14-APR-2030	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
3003	N/A	N/A	N/A	N/A
3003AA	POP 15-APR-2029 TO 14-APR-2030	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084

3003AB	POP 15-APR-2029 TO 14-APR-2030	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
3004	N/A	N/A	N/A	N/A
3004AA	POP 15-APR-2029 TO 14-APR-2030	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
3004AB	POP 15-APR-2029 TO 14-APR-2030	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
3004AC	POP 15-APR-2029 TO 14-APR-2030	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
3004AD	POP 15-APR-2029 TO 14-APR-2030	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
3004AE	POP 15-APR-2029 TO 14-APR-2030	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
3005	POP 15-APR-2029 TO 14-APR-2030	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
4001	POP 15-APR-2030 TO 14-APR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
4002	POP 15-APR-2030 TO 14-APR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
4003	N/A	N/A	N/A	N/A
4003AA	POP 15-APR-2030 TO 14-APR-2031	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
4003AB	POP 15-APR-2030 TO 14-APR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
4004	N/A	N/A	N/A	N/A

4004AA POP 15-APR-2030 TO 14-APR-2031	N/A	M00084 WOUNDED WARRIOR BATTALION 1998 HILL AVENUE QUANTICO VA 22134 KATIE HAMLIN 301-785-1529 FOB: Destination	M00084
4004AB POP 15-APR-2030 TO 14-APR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
4004AC POP 15-APR-2030 TO 14-APR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
4004AD POP 15-APR-2030 TO 14-APR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
4004AE POP 15-APR-2030 TO 14-APR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084
4005 POP 15-APR-2030 TO 14-APR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	M00084

CLAUSES INCORPORATED BY FULL TEXT

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR: www.acquisition.gov

DFARS: <https://www.acq.osd.mil/DPAP/dars/dfarspgi/current/index.html>

(End of provision)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: www.acquisition.gov

DFARS: <https://www.acq.osd.mil/DPAP/dars/dfarspgi/current/index.html>

(End of clause)

CLAUSES INCORPORATED BY REFERENCE

52.203-3	Gratuities	APR 1984
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.204-7	System for Award Management	NOV 2024
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-29	Federal Acquisition Supply Chain Security Act Orders--Representation and Disclosures.	DEC 2023
52.207-1	Notice Of Standard Competition	MAY 2006
52.212-1	Instructions to Offerors--Commercial Products and Commercial Services	SEP 2023
52.212-2	Evaluation - Commercial Items	NOV 2021
52.212-4	Contract Terms and Conditions--Commercial Products and Commercial Services	NOV 2023
52.217-4	Evaluation Of Options Exercised At The Time Of Contract Award	JUN 1988
52.217-5	Evaluation Of Options	JUL 1990
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2024
52.223-10 (Dev)	Waste Reduction Program (DEVIATION 2025-O0004)	MAR 2025
52.224-1	Privacy Act Notification	APR 1984
52.224-2	Privacy Act	APR 1984
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.229-3	Federal, State And Local Taxes	FEB 2013
52.229-11	Tax on Certain Foreign Procurements--Notice and Representation	JUN 2020
52.232-8	Discounts For Prompt Payment	FEB 2002
52.232-23	Assignment Of Claims	MAY 2014
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.237-1	Site Visit	APR 1984
52.237-2	Protection Of Government Buildings, Equipment, And Vegetation	APR 1984
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities	NOV 2024
52.242-13	Bankruptcy	JUL 1995
52.245-1	Government Property	SEP 2021
52.245-9	Use And Charges	APR 2012
52.246-4	Inspection Of Services--Fixed Price	AUG 1996
52.249-8	Default (Fixed-Price Supply & Service)	APR 1984
252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.203-7005	Representation Relating to Compensation of Former DoD Officials	SEP 2022
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7004	Antiterrorism Awareness Training for Contractors	JAN 2023

252.204-7008	Compliance With Safeguarding Covered Defense Information Controls	OCT 2016
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	MAY 2024
252.204-7016	Covered Defense Telecommunications Equipment or Services -- Representation	DEC 2019
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services -- Representation	MAY 2021
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	JAN 2023
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.204-7020	NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.204-7022	Expediting Contract Closeout	MAY 2021
252.204-7023	Reporting Requirements for Contracted Services.	JUL 2021
252.204-7024	Notice on the Use of the Supplier Performance Risk System	MAR 2023
252.205-7000	Provision Of Information To Cooperative Agreement Holders	OCT 2024
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.215-7008	Only One Offer	DEC 2022
252.215-7010	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data	MAY 2024
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors	JAN 2023
252.215-7016	Notification to Offerors--Postaward Debriefings	DEC 2022
252.222-7005	Prohibition on Use of Nonimmigrant Alien--Guam	SEP 1999
252.223-7006	Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials	SEP 2014
252.225-7012	Preference For Certain Domestic Commodities	APR 2022
252.225-7031	Secondary Arab Boycott Of Israel	JUN 2005
252.225-7048	Export-Controlled Items	JUN 2013
252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY 2022
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime	JAN 2023
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region - Representation	JUN 2023
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region	JUN 2023
252.225-7972 (Dev)	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-O0014)	AUG 2024
252.225-7973 (Dev)	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems - Representation (DEVIATION 2024-O0014)	AUG 2024
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns	JAN 2023
252.227-7015	Technical Data--Commercial Products and Commercial Services	JAN 2025
252.227-7020	Rights In Special Works	JUN 1995
252.227-7021	Rights In Data--Existing Works	MAR 1979
252.227-7028	Technical Data or Computer Software Previously Delivered to the Government	JUN 1995
252.227-7037	Validation of Restrictive Markings on Technical Data	JAN 2025
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018

252.232-7010	Levies on Contract Payments	DEC 2006
252.239-7098 (Dev)	Prohibition on Contracting to Maintain or Establish a Computer Network Unless Such Network is Designed to Block Access to Certain Websites - Representation. (Deviation 2021-O0003)	APR 2021
252.243-7001	Pricing Of Contract Modifications	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services	NOV 2023
252.245-7003	Contractor Property Management System Administration	JAN 2025
252.245-7004 (Dev)	Reporting, Reutilization, and Disposal (DEVIATION 2022-O0006)	NOV 2021

CLAUSES INCORPORATED BY FULL TEXT

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-- Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications- Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical

technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [☐] will, [☐] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [☐] does, [☐] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror () has () does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) Definitions. As used in this provision --

"Covered telecommunications equipment or services" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

"Economically disadvantaged women-owned small business (EDWOSB) concern" means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

"Forced or indentured child labor" means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

"Highest-level owner" means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

"Immediate owner" means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

"Inverted domestic corporation" means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

"Manufactured end product" means any end product in product and service codes (PSCs) 1000-9999, except--

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

"Place of manufacture" means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

"Predecessor" means an entity that is replaced by a successor and includes any predecessors of the predecessor.

"Reasonable inquiry" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

"Restricted business operations" means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations

do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate--

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

"Sensitive technology"--

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically--

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

"Service-disabled veteran-owned small business (SDVOSB) concern" means a small business concern—

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

"Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program" means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

"Service-disabled veteran-owned small business (SDVOSB) Program" means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

"Small business concern"--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

"Small disadvantaged business concern, consistent with 13 CFR 124.1001", means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

"Subsidiary" means an entity in which more than 50 percent of the entity is owned--

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

"Successor" means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

"Veteran-owned small business concern" means a small business concern--

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

"Women-owned business concern" means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

"Women-owned small business concern" means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

"Women-owned small business (WOSB) concern eligible under the WOSB Program" (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications--Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer. Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that--

(i) It [____] is, [____] is not a small business concern; or

(ii) It [____] is, [____] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____]

(2) Veteran-owned small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents as part of its offer that it [____] is, [____] is not a veteran-owned small business concern.

(3) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it [____] is, [____] is not an SDVOSB concern.

(4) SDVOSB concern joint venture eligible under the SDVOSB Program. The offeror represents that it [____] is, [____] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in

paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(5) Small disadvantaged business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it [____] is, [____] is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) Women-owned small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it [____] is, [____] is not a women-owned small business concern.

(7) WOSB joint venture eligible under the WOSB Program. The offeror represents that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(8) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) Women-owned business concern (other than small business concern). (Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it (____) is, a women-owned business concern.

(10) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

(11) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [____] is, [____] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [____] is, [____] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Certifications and representations required to implement provisions of Executive Order 11246--

(1) Previous Contracts and Compliance. The offeror represents that--

(i) It (____) has, (____) has not, participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation, and

(ii) It (____) has, (____) has not, filed all required compliance reports.

(2) Affirmative Action Compliance. The offeror represents that--

(i) It (____) has developed and has on file, (____) has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR Subparts 60-1 and 60-2), or

(ii) It (____) has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American --Supplies, is included in this solicitation.)

(1) (i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
____	____	____
____	____	____
____	____	____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No.

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) Buy American--Free Trade Agreements--Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act, is included in this solicitation.)

(i) (A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
—	—	—
—	—	—
—	—	—

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No.
—
—
—

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.
—
—
—

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free

Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals--

(1) [____] Are, [____] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) [____] Have, [____] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) [____] Are, [____] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [____] Have, [____] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at [22.1503\(b\)](#).]

(1) Listed end products.

Listed end product	Listed countries of origin
_____	_____
_____	_____
_____	_____

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

[☐] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

[☐] (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) (☐) In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) (☐) Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards. (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.)

[The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

[☐] (1) Maintenance, calibration, or repair of certain equipment as described in FAR [22.1003-4\(c\)\(1\)](#). The offeror (☐) does (☐) does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR [22.1003-4\(c\)\(2\)\(ii\)](#)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

[____] (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror (____) does (____) does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

(____) TIN: -----.

(____) TIN has been applied for.

(____) TIN is not required because:

(____) Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

(☐) Offeror is an agency or instrumentality of a foreign government;

(☐) Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

(☐) Sole proprietorship;

(☐) Partnership;

(☐) Corporate entity (not tax-exempt);

(☐) Corporate entity (tax-exempt);

(☐) Government entity (Federal, State, or local);

(☐) Foreign government;

(☐) International organization per 26 CFR 1.6049-4;

(☐) Other -----.

(5) Common parent.

(☐) Offeror is not owned or controlled by a common parent;

(☐) Name and TIN of common parent:

Name - .

TIN - .

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations—

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that--

(i) It is not an inverted domestic corporation; and

(ii) It is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph

(o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (*e.g.*, [52.212-3\(g\)](#)) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation.

(1) The Offeror represents that it [____] has or [____] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates “has” in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____

Immediate owner legal name: ____

(Do not use a “doing business as” name)

Is the immediate owner owned or controlled by another entity:

[____] Yes or [____] No.

(3) If the Offeror indicates “yes” in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest level owner CAGE code: ____

Highest level owner legal name: ____

(Do not use a “doing business as” name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that--

(i) It is [____] is not [____] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is [____] is not [____] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it [____] is or [____] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____ .

(Do not use a "doing business as" name).

(s) [Reserved].

(t) Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) [____] does, [____] does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a

greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) [____] does, [____] does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: ____

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services--Representation. Section 889(a)(1)(A) and section 889(a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that--

(i) It [____] does, [____] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it [____] does, [____] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION 2025-O0003/ DEVIATION 2025-O0004) (MAR 2025) ALTERNATE II (MAR 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

X (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

X (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

___ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community--see FAR 3.900(a).

X (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (6) [Reserved]

___ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders--Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

___ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

___ (ii) Alternate I (DEC 2023) of 52.204-30.

X (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

X (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

___ (14) [Reserved]

___ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

___ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

___ (17) [Reserved]

X (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

___ (ii) Alternate I (MAR 2020) of 52.219-6.

___ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

___ (ii) Alternate I (MAR 2020) of 52.219-7.

X (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

___ (21)(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

___ (ii) Alternate I (NOV 2016) of 52.219-9.

___ (iii) Alternate II (NOV 2016) of 52.219-9.

___ (iv) Alternate III (JUN 2020) of 52.219-9.

___ (v) Alternate IV (JAN 2025) of 52.219-9.

___ (22) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

___ (ii) Alternate I (MAR 2020) of 52.219-13.

X (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

____ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

X (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

X (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

____ (ii) Alternate I (MAR 2020) of 52.219-28.

____ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

____ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

____ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

____ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

____ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

____ (32) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).

____ (33) [Reserved]

____ (34) [Reserved]

____ (ii) Alternate I (FEB 1999) of 52.222-26.

X (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

____ (ii) Alternate I (JUL 2014) of 52.222-35.

X (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

____ (ii) Alternate I (JUL 2014) of 52.222-36.

x (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

X (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

X (39)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

____ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

____ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

____ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, et seq.).

X (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

X (47) (i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

____ (ii) Alternate I (JAN 2017) of 52.224-3.

____ (48) (i) 52.225-1, Buy American--Supplies (OCT 2022)) (41 U.S.C. chapter 83).

____ (ii) Alternate I (OCT 2022) of 52.225-1.

____ (49) (i) 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

____ (ii) Alternate I [Reserved].

____ (iii) Alternate II (JAN 2025) of 52.225-3.

____ (iv) Alternate III (FEB 2024) of 52.225-3.

____ (v) Alternate IV (OCT 2022) of 52.225-3.

____ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

X (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

X (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

____ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

____ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C.4505, 10 U.S.C. 3805).

____ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

____ (59) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (OCT 2018) (31 U.S.C. 3332).

____ (60) 52.232-34, Payment by Electronic Funds Transfer--Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

____ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

X (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

____ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

____ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

____ (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

____ (ii) Alternate I (APR 2003) of 52.247-64.

____ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

X (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

____ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

____ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67).

____ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67).

x (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

X (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).
 ____ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts

to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018), (41 U.S.C. chapter 67).

(xvi) _____ (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67.)

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67)

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E. O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii) (A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates a single award contract with Firm Fixed Price and Cost Reimbursable line items resulting from this solicitation.

(End of provision)

52.217-7 OPTION FOR INCREASED QUANTITY--SEPARATELY PRICED LINE ITEM (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within 5 days. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days of contract expiration.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days, provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

THIS STATEMENT IS FOR INFORMATION ONLY: IT IS NOT A WAGE DETERMINATION

Employee Class	Monetary Wage-Fringe Benefits
Administrative Assistant	27.39 - 48%
Case Manager	27.39 - 48%
General Clerk III	19.76 - 48%
General Clerk II	17.61 - 48%
General Clerk I	16.14 - 48%

(End of clause)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Michael T. Curley Jr.
MCINCR-RCO
2010 Henderson Rd.
Quantico, VA 22134

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.203-6 (ALT I)

RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (Nov 2021)

(a) Except as provided in (b) of this clause, the Contractor shall not enter into any agreement with an actual or prospective subcontractor, nor otherwise act in any manner, which has or may have the effect of restricting sales by such subcontractors directly to the Government of any item or process (including computer software) made or furnished by the subcontractor under this contract or under any follow-on production contract.

(b) The prohibition in paragraph (a) of this clause does not preclude the Contractor from asserting rights that are otherwise authorized by law or regulation. For acquisitions of commercial products or commercial services, the prohibition in paragraph (a) applies only to the extent that any agreement restricting sales by subcontractors results in the Federal Government being treated differently from any other prospective purchaser for the sale of the commercial product(s) and commercial service(s).

(c) The Contractor agrees to incorporate the substance of this clause, including this paragraph (c), in all subcontracts under this contract which exceed the simplified acquisition threshold, as defined in Federal Acquisition Regulation 2.101 on the date of subcontract award.

(End of Clause)

CLAUSES INCORPORATED BY FULL TEXT

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

INVOICE 2 IN 1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	HQ0871
Issue By DoDAAC	M00264
Admin DoDAAC**	M00264
Inspect By DoDAAC	M00084

Ship To Code	M00084
Ship From Code	TBD
Mark For Code	_____
Service Approver (DoDAAC)	M00084
Service Acceptor (DoDAAC)	M00084
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	TBD
Other DoDAAC(s)	_____

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

WAGE DETERMINATION

WAGE DETERMINATION UNDER THE SERVICE CONTRACT ACT

In accordance with paragraph (c) Compensation of FAR clause 52.222-41, the wage determination attached to this contract is WD# 2015-4281, revision: (current); 2015-5635, revision: (current); and 2015-4389, revision: (current). The Contracting Officer will make the wage determination full text available at the time of notice of Award. Also, the full text may be accessed electronically at: <https://sam.gov/wage-determination>

FAR 52.212-1 ADDENDUM

52.212-1 INSTRUCTIONS TO OFFERORS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES ADDENDUM

Tailored in accordance with FAR 12.302(a)

This is a Federal Acquisition Regulation (FAR) Part 12, Acquisition of Commercial Items, procurement utilizing the procedures in FAR Part 15, Contracting by Negotiation procedures. This request for proposals (RFP) will result in a single award with Firm Fixed-Price (FFP) and Cost Reimbursement contract line items (CLINs).

The Government intends to make an award from initial proposals; therefore, offerors should provide their most competitive and complete proposal assuming there will not be a future opportunity to revise its proposal. However, after receipt of proposals the Government may, with or without notice, conduct discussions with and, if desired, seek proposal revisions from as many or as few offerors as it, in its discretion, deems appropriate. Volume page limitations noted below may change based on proposal revisions received in response to discussions.

An offeror's proposal must be determined to be acceptable or better to be eligible for award. The offeror must demonstrate an understanding of and an ability to meet the requirements set forth in the solicitation. All claimed capabilities to meet the requirements shall be realistic and are subject to verification by the Government. The offeror shall provide sufficient detail to substantiate the validity of all statements. General statements that the offeror can or will comply with the requirements, that standard procedures will be used, that well known techniques will be used, or paraphrasing the solicitation's requirements in whole or part will NOT constitute compliance.

Non-conformance with these instructions may result in rejection of the proposal, an unfavorable proposal evaluation, or the proposal being deemed ineligible for award.

The Government reserves the right to incorporate all or part of the successful offeror's proposal into the resultant Contract.

(b) Submission of offers.

1. QUESTIONS

Offerors may submit questions requesting clarification of solicitation requirements. All questions must be received no later than 10 Oct 2025 at 10:00AM Eastern Time (ET). All questions shall be submitted on the attached Question and Answer form (RFP Attachment 1) in its original file format and to not convert the form to a version in Word, Adobe Acrobat (.pdf), or other file format. The form is to be submitted electronically to: cynthia.guthridge@usmc.mil and bradley.hoover@usmc.mil.

Questions received after the aforementioned date and time will not be accepted.

2. OFFERS

Electronic (email) offers only will be accepted; paper copies are not required nor desired. Offers must be received by the date and time stated in Standard Form (SF) 1499 Block 8. Offers are to be submitted to: cynthia.guthridge@usmc.mil and bradley.hoover@usmc.mil. Email subject line shall read "M00264-26-R-0001 Submission [Vendor name] Source Selection Sensitive".

Due to the firewall at Marine Corps Base Quantico, please be advised it is the offeror's responsibility to ensure all electronic submissions are received by the Marine Corps Installations National Capital Region- Regional Contract Office (MCINCR-RCO) in the timeframe given above, and not exceeding the file limit size of 25MB per electronic submission. Delivery delays that cause a question to be unanswered or an offer to be late are not the responsibility of MCINCR-RCO. Offerors are advised to contact all above named individuals if receipt of questions or the offer is not acknowledged within an hour of it being transmitted or within an hour of the submission closing date and time.

3. OFFER FORMAT

To maximize efficiency for proposal evaluation, the entire offer submission must meet the following format requirements:

- a. Each page must include the solicitation number and the offeror's business name; except for Government-generated RFP attachments.
- b. Each page of the quote shall include the following footer: "CUI:/SSEL/CONREG/PROPIN", except for Government-generated RFP attachments.
- c. Pages shall be numbered consecutively within each volume. As an example, page 7 of Volume II is numbered II-7.

- d. Minimum 10-point font, Times New Roman font for all text material, graphics, figures, exhibits, screen shots, drawings, and etc.
- e. Each page if printed: fits on 8.5 x 11 inch paper, at a minimum is single-spaced, has a minimum 1 inch margin on all sides.
- f. Spreadsheet files shall include all formulas. All rows, columns, cells, and worksheets shall be visible; no password protected fields (excluding Government protected fields). Decimal places are limited to two (2) places.
- g. Page limitations specified for each volume shall not be exceeded. All material in excess of the specified page limits will neither be read nor evaluated. Cover pages, table of contents, appendices, references, plans, etc., as well as graphs, charts, attachments and diagrams are included in the page count, unless otherwise noted. Partial pages count as a full page.
- h. No hyperlinks are permitted.
- i. Microsoft Office 2016 compatible files are required.
- j. RFP Attachment 1, 2, and 4; as well as RFP PWS Attachment 1, are submitted in Excel as an attachment to the proposal.

4. OFFER CONTENT

The offer shall be presented in four separate volumes:

Volume I: Administrative and Compliance
 Volume II: Technical
 Volume III: Past Performance
 Volume IV: Price

Offerors are advised to ensure their proposal is accurate and complete. Each offeror shall assume the Government has no prior knowledge of its capabilities and experience. Each proposal shall stand on its own. It shall not be dependent or reliant on information not submitted. Brochuremanship is NOT desired, rather clarity, completeness, and conciseness are essential. Offerors are cautioned they are responsible for ensuring the information they desire to have evaluated for a particular volume is contained in that specific volume. The Government will consider information not found in the designated volume as being omitted from the offeror's proposal.

4.1 Volume I Administrative and Compliance Documentation *(No page limitation)*

4.1.1 Offer Letter

- The solicitation number.
- Company information (name, address, telephone, CAGE, UEI, TIN).
- "Remit to" address, if different than above provided address.
- Authorized personnel who, in the event of questions, can provide answers regarding the offer and act on behalf of the company.
- Statement acknowledging all solicitation amendments (as applicable).
- Statement of agreement or statement specifying the extent of agreement with all terms and conditions, and provisions included in the RFP. Offerors are to clearly detail any exceptions taken and the rationale for the exceptions taken. Please note that exceptions taken to the RFP may render the offer unacceptable to the Government.
- Identify all proposed sub-contractors, to include teaming and joint ventures, by company name and CAGE.
- Self-certify compliance with FAR 52.219-14 'Limitation on Subcontracting'.
- Demonstration of responsibility as required in FAR 9.104-1.
- Length of proposal validity (Proposal validation shall be for no less than 210 days.)
- SF 1449 page 1 with signature and date (pdf submission only).
- Total evaluated price.

4.1.2 Solicitation Representations and Certifications

Completed copy of all FAR and Defense Federal Acquisition Regulation Supplement (DFARS) solicitation representations and certifications are required for the prime. If the (prime) offeror completed all the solicitation's required FAR and DFARS representations and certifications in the System for Award Management (SAM), please include a statement stating the representations and certifications required in the solicitation are in SAM and are current and correct; including a copy of them all within Volume I is not necessary. Any required FAR and DFARS representations and certifications that are not available in SAM shall be submitted in Volume I.

4.1.3 Organizational Conflict of Interest (OCI)

Offeror shall provide an affirmative statement that no actual or potential OCIs exist, or a detailed plan which mitigates existing or anticipated OCIs. If a plan is submitted, it shall address all actual or potential conflicts of interest in adequate detail for the contracting officer to determine whether an OCI exists or has been mitigated. The offeror shall describe how the OCI Mitigation Plan was developed and the company's approach to avoiding, mitigating, or neutralizing any identified OCI risks. The prime contractor must validate that no OCIs exist between the prime and proposed subcontractors. The prime is responsible for managing and validating the OCI status of its subcontractors.

4.1.4 Verification of Eligibility of Small Business Joint Ventures

A small business joint venture offeror must submit, with its offer, the representation required at FAR 52.212-3 'Offeror Representations and Certifications-Commercial Products and Commercial Services' at paragraph (c), and FAR 52.219-1, Small Business Program Representations' paragraph (c) in accordance with 52.204-8(d) and 52.212-3(b) for the following categories:

(A) Service-disabled veteran-owned small business.

4.1.5 All Other Provisions and Clauses

All other provisions and clauses not pertaining to 4.1.2 herein requiring contractor acknowledgment/completion must be addressed.

4.2 Volume II Technical: Factor 1 (page limitation: 30 total pages. ***ALL** pages count, with exception of RFP Attachment 2. All material beyond page 30 will neither be read nor evaluated. RFP Attachment 2 shall remain as an Excel document and submitted as an attachment.*)

This volume shall not contain pricing data or pricing information whatsoever.

The technical volume shall focus on the offeror's ability to achieve successful contract performance and specifically include the following:

4.2.1 Technical Approach Description

A detailed description of the proposed technical approach for Wounded Warrior Task Requirements PWS Section 6 Tasks 6.1 through 6.5. The proposal must demonstrate an understanding of and an ability to meet the PWS requirements. The proposal must sufficiently describe the company's capability to provide the required services, how it will address vacancies, and how it will comply with the requirements throughout the performance period. The description shall identify which task and/or subtasks will be performed by the prime and which will be performed by a (named) subcontractor.

4.2.2 Management Plan

A detailed description of the proposed Standard Operating Procedures addressing (at a minimum), the required content listed in the Delivery Schedule table at PWS Section 7.

4.2.3 Staffing Matrix

Offerors must provide a staffing matrix, utilizing RFP Attachment 2, which details the minimum proposed qualifications and capabilities of all proposed personnel, what PWS task(s) each will perform, and how the proposed positions and associated qualifications and capabilities will contribute to performance that meets or exceeds the PWS requirements. The offeror shall describe what constitutes a full time equivalent and state the proposed productive work hours. The proposal shall describe how the approach to integrating the various background, education, and experience of its proposed personnel ensures the offeror will meet or exceed the PWS technical requirements. Submission of resumes, “resume like” information, and the name of individuals is strictly prohibited.

The offeror shall identify and map its company position name to the occupation code and position description per the Department of Labor (DoL) Occupational Outlook Handbook (<https://www.bls.gov/ooh/>) for each of the positions proposed for this effort.

RFP Attachment 2’s format shall not be altered, nor should additional tabs be added to the spreadsheet.

The awardee’s staffing matrix will become the minimum standard in the resultant contract.

4.2.4 Phased Transition-In Approach

Pursuant to PWS Paragraph 9.1, and the delivery table at PWS Paragraph 7, the proposal shall include a comprehensive description of the phased transition-in approach, scheduled to begin on 15 March 2026, which is 30 days prior to the expiration of the current contract.

4.3 Volume III Past Performance: Factor 2 (page limitation: 20 total pages. All material beyond page 20 will neither be read nor evaluated. Page limitation excludes the below mentioned PDFs of each referenced past performance, any necessary Past Performance Questionnaires, any necessary signed commitments as described below, and any CPARS records if the offeror so chooses to include).

The offeror shall demonstrate relevant and recent past performance or affirmatively state that it possesses no relevant and recent past performance. Relevant past performance is defined as the level of similarity in scope, magnitude, and complexity as compared to what the effort requires. Recent is defined as a contract performed within the past five years from solicitation date.

When submitting a subcontractor past performance, a commitment signed by the offeror and subcontractor certifying that if a contract is awarded resulting from the proposal, the parties commit to joint performance as proposed shall be included. If the signed commitment is not fully executed by both parties and provided with the Past Performance volume, subcontractor references will not be evaluated or considered. Affiliate companies, sister companies, teaming arrangements and joint venture’s past performance in addition to their own (if applicable) may also be included and will be considered provided that sufficient documentation is included in the proposal. The prime contractor must demonstrate that the affiliate will perform significant and critical aspects of the contract if awarded. Documentation includes a copy of the signed arrangement such as documented affiliation, a copy of the teaming agreement, a copy of the joint venture agreement, etc. (copies of teaming arrangements, joint venture agreement and/or commitments by subcontractors can be provided as an Appendix in the Past Performance Volume and are excluded from the page count).

4.3.1 Past performance submission

To demonstrate its past performance, the offeror shall identify **up to three** of its most relevant and recent contract efforts. The offeror must be the prime on at least one of the three efforts. If the prime provides its past performance as a subcontractor as part of the three most relevant contracts or efforts, the subcontractor past performance will be given weight relative to the scope, magnitude, and complexity of the aspects of the work under the solicitation that as a subcontractor it performed. Past performance of proposed subcontractor(s) or teaming partner(s) identified in Volume I and Volume II may be included.

All offerors must provide a PDF version of each referenced past performance effort that includes: 1) the signed cover page of the referenced contract award, 2) the referenced contract's priced line items (and sub-line items if any) and 3) the referenced contract's Performance Work Statement/Statement of Work/Statement of Objectives, as applicable. This information is not included in the page limitations.

All offerors must provide its past performance utilizing RFP Attachment 3. The attachment shall not be altered, meaning margins shall not be adjusted, no additional tables shall be added, tables shall not be removed, and the required instructions and information within each table shall not be edited. Completion of the form shall be 10pt, Times New Roman font.

In the event a CPARS record (interim or final) is not available for a referenced past performance contract, RFP Attachment 3a 'Past Performance Questionnaire' (PPQ) must be utilized. The offeror will complete PPQ's Section I and II and then provide the PPQ to the named contact (assessor) for completion. The assessor will complete PPQ's Section III through Section XI, and upon completion provide the PPQ directly to the contracting office as instructed in the PPQ.

4.4 Volume IV Price: Factor 3 *(page limitation, excluding the pricing template: 10 pages. All material beyond page 10 will neither be read nor considered. The Excel Price Workbook shall be submitted as an attachment.)*

The offeror shall provide sufficient price information to allow the contracting officer to determine reasonableness of the proposed price. The price proposal shall include a narrative describing any assumptions, an explanation for any year-to-year price fluctuations used in the unit prices, an explanation for the proposed travel handling rate, and any other information deemed necessary to support the basis of the offeror's price.

Due to the commercial and competitive nature of this procurement, the Government is not requesting submission of certified cost or pricing data under this solicitation in accordance with FAR 15.4. The offeror shall not submit certified cost or pricing data substantiating the cost elements being proposed. If adequate competition is not obtained or should a situation develop that the Government will require the submission of additional data other than certified cost or pricing data, the offeror should be prepared to submit the data within five business days after being requested by the Government. Should one of the business days fall on a Federal holiday, the next business day will be counted in succession.

4.4.1 Price submission

The offeror's price is submitted by completing the attached price workbook (RFP Attachment 4) in MS Excel format (.xlsx) with formulas intact (NOT a read-only spreadsheet) (No macros). The offeror shall ensure a total evaluated price is included in its proposal adhering to the price workbook provided (RFP Attachment 4). The offeror shall propose unit prices and handling rates (as applicable) for each pricing element in the Price Matrix worksheet within the price workbook (RFP Attachment 4). Data contained in the price workbook shall be consistent with the data contained in the Technical Volume, meaning, the price supports the level of resources proposed and required to fulfill the solicitation's requirements. The price workbook shall remain in its initial form, meaning no additional worksheets/tabs with additional information shall be added. Price workbook formulas shall remain as structured. If a pre-established formula error is noted, make any necessary corrections but notify the contracting office immediately.

Handling Rates: Since unit prices are not set on the contract for Travel, the fixed handling rate shall consist of expenses other than the cost for travel (direct cost). This handling rate shall be based on a percentage the contractor will charge for processing and acquiring Travel (CLIN's 0005, 1005, 2005, 3005, and 4005). The handling rate encompasses handling and indirect expenses the contractor may account for when processing transactions. No additional indirect rates are applicable since there is a negotiated fixed price handling rate in the contract. This rate is a fixed rate to be applied on a per dollars basis. The rate will be incorporated in the contract. The offeror shall account for the handling rate in their Total Evaluated Price amount. Fee is strictly prohibited.

4.4.2 Price Workbook

The price workbook contains three (3) sheets: Basis of Estimate; Price Matrix; and, Total Evaluated Price Matrix.

4.4.2.1 Basis of Estimate: This sheet is similar to the Technical Volume's Staffing Matrix but requires offeror input of annual hours, fully burdened labor rates, and total annual labor costs for each performance period.

4.4.2.2 Price Matrix: This sheet requires offeror input of line-item pricing on a per month basis or each basis, for each performance period. Offeror input is also required for its handling rate percentage for travel.

4.4.2.3 Total Evaluated Price Matrix: This sheet cumulates the information entered by the offeror on the Price Matrix sheet and produces the total evaluated price utilized in the Government's evaluation. Contractor input on this sheet is not required.

(e) Multiple offers.

Offerors shall not submit multiple offers representing alternative terms and conditions for satisfying the requirements of this solicitation.

(f) Late submissions, modifications, revisions, or withdrawals of offers. (2)(i): Late and incomplete proposals will be not evaluated and will be deemed ineligible for consideration of award.

LIST OF ATTACHMENTS

RFP Attachments	PWS Attachments
1. Question and Answer Document	1. GFP Attachment
2. Staffing Matrix	
3. Past Performance	
3a. Past Performance Questionnaire	
4. Price Workbook	
5. Wage Determination	
6. (12) Month Metrics	

The following will become part of the contract at time of award:

RFP Attachment 2: Staffing Matrix

RFP Attachment 4: Price Workbook

RFP Attachment 5: Wage Determination

PWS Attachment 1: GFP Attachment

End 52.212-1 Addendum

FAR 52.212-2 ADDENDUM

52.212-2 EVALUATION – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES ADDENDUM

Tailored in accordance with FAR 12.301(c)

GENERAL

The Government anticipates a single contract award with a 12-month base period of performance, with four 12-month option periods of performance resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

The Government will execute the evaluation using the Best Value Tradeoff source selection process and will be conducted pursuant to FAR Part 15 'Contracting by Negotiations'. The Best Value Tradeoff criteria is established in Tables 3 – 5 in the Department of Defense (DoD) Source Selection Procedures (SSP), dated 20 August 2022.

BASIS OF AWARD

The Government will evaluate each proposal based on the non-price factors and the price factor as described below. Proposals that are rated "Unacceptable" or "Marginal" in Factor 1 (Technical Approach) or that receive a "Limited" or "No Confidence" rating in Factor 2 (Past Performance) will be considered deficient and ineligible for award.

Factors and Relative Importance of Factors

To determine the proposal providing the best value, a tradeoff process of the following factors will be conducted:

- Factor 1: Technical
- Factor 2: Past Performance
- Factor 3: Price

The non-price factors (Factors 1 and 2) are in descending order of importance. All non-price factors when combined are significantly more important than Factor 3- Price. Prospective offerors are forewarned that a proposal with the lowest evaluated price meeting the solicitation requirements may not be selected for award if a qualitatively superior, higher-priced proposal is determined to be more advantageous to the Government. The Government is not bound to make award to an offer that exceeds the requirement if it provides no benefit or value to the Government.

EVALUATION CRITERIA

Each offeror's submission will be screened by MCINCR-RCO to ensure completeness and compliance with all the preceding instructions. Failure to adhere to offer format and offer content may result in the submission being determined as noncompliant and ineligible for consideration of award.

Factor 1: Technical

The technical factor will include evaluation of the offeror's Technical Approach Description, Management Plan, Staffing Matrix, and Phased Transition-In Approach. This factor will be rated in accordance with DoD's SSP Table 3 Combined Technical/Risk Rating Method.

(i) **Technical Approach Description.** The offeror will be evaluated on how it effectively demonstrates:

- An understanding of and ability to meet the requirements identified in section 4.2.1 of FAR 52.212-1 Addendum.

(ii) **Management Plan.** The offeror will be evaluated on how it effectively demonstrates:

- A detailed description of the proposed Standard Operating Procedures addressing (at a minimum), the required content listed in the Delivery Schedule table at PWS Section 7.

(iii) **Staffing Matrix.** The offeror will be evaluated on how effectively its Staffing Matrix demonstrates:

- The proposed personnel meet or exceed the minimum required qualifications at PWS Section 8;
- How its personnel are assigned to perform the PWS task(s), and how those positions and qualifications will contribute to successful performance of PWS requirements;

- Its full time equivalent and productive hours.
- (iv) **Phased Transition-In Approach.** The offeror will be evaluated on how its Phased Transition-In approach effectively demonstrates:
- Its approach to provide a transition 30 days prior to the current contract's end date;

Factor 2: Past Performance

The evaluation will be conducted based on the information provided by the offeror in RFP Attachment 3 and 3a, as applicable. The past performance factor will evaluate the offeror's past performance of relevant and recent past performance contracts as it relates to this effort. Relevant past performance is defined as the level of similarity in scope, magnitude, and complexity as compared to what the effort requires. Recent is defined as a contract performed within the past five years from solicitation date. The outcome of the evaluation will determine the degree of confidence the Government has in the offeror's ability to provide services that meet the Government's need based on a demonstrated record of its relevant and recent past performance, as well as the quality of its performance. The Government will give greater consideration to the contracts or efforts which the Government determines are most relevant. This factor will be rated in accordance with the DoD SSP Performance Confidence Assessment method.

The offeror will be evaluated on how its past performance:

- Is recent in terms of the stated information provided above;
- Is relevant in terms of scope, magnitude of effort, and complexities the solicitation requires;

The evaluation will also include, as applicable, the submitted Past Performance Questionnaire(s) to determine how well the offeror performed.

An offeror determined to have no record of recent, relevant past performance (or in an instance where no information on the offeror's past performance is available), will not be evaluated favorably or unfavorably for the Past Performance factor. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "Neutral".

The Government may obtain past performance information from points of contact other than those identified by the offeror, from the Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), or other databases; and interviews with Defense Contract Management Agency (DCMA) for the purpose of evaluating the offeror's past performance.

In accordance with DFARS 252.204-7024, the offeror's risk assessment in the Supplier Performance Risk System (SPRS) will be evaluated. Offerors without a risk assessment in SPRS shall not be considered favorably or unfavorably.

Factor 3: Price

The offeror's total evaluated price is outlined in RFP Attachment 4. The Government will conduct its evaluation by performing a price analysis of the total evaluated price in accordance with FAR 15.4 to determine price reasonableness and best value. The Government's evaluation will also include an analysis of unbalanced pricing. The total evaluated price will also be evaluated for consistency to ensure the information contained in other volumes is reflected.

In accordance with DFARS 252.204-7024, evaluation will also include the offeror's Price Risk in the SPRS. Offerors without a Price Risk assessment in SPRS shall not be considered favorably or unfavorably.

End 52.212-2 Addendum

